

The Community Guide to Landscape Protection

under the Resource Management Act 1991

Raewyn Peart



Environmental Defence Society

**The Community Guide to
Landscape Protection
under the Resource Management Act 1991**

Raewyn Peart

Environmental Defence Society

First published 2005

Published by:

Environmental Defence Society Incorporated

P O Box 95 152

Swanson

Auckland

New Zealand

Phone (09) 835 4350

www.eds.org.nz

www.rmaguide.org.nz

ISBN 0-9582641-2-0

This book is copyright. Apart from any fair dealing for the purpose of private study, research, criticism or review, as permitted under the Copyright Act, no part may be reproduced by any process without the permission of the publishers.

© Raewyn Peart, Environmental Defence Society Incorporated 2005

Printed by ACT Printing Limited

Cover photograph by Raewyn Peart: Ocean Beach, Kawhia

Table of Contents

Foreword	v
Preface	vii
Content of Guide	vii
Companion Guides	vii
Disclaimer	viii
Environmental Defence Society	viii
Acknowledgements	ix
Part One	
Introduction to Landscape Protection	
1 Frequently Asked Questions	3
What is 'landscape'?	3
Why are landscapes important?	3
What landscapes are protected under the RMA?	3
How are important landscapes identified?	3
What can threaten important landscapes?	4
Who manages important landscapes under the RMA?	4
How are important landscapes protected?	4
How can I help protect important landscapes?	5
2 Landscape Protection	7
What is 'landscape'?	7
Why should we look after landscapes?	9
What can threaten valued landscapes?	10
3 Promoting Landscape Protection	15
Opportunities for involvement	15
Landscape provisions in plans	16
Landscape considerations for development design	18
Permanent protection	20

Part Two

Detailed Information on Landscape Protection

4	Landscape Protection under the RMA	25
	Who is to protect landscapes under the RMA?	25
	What landscapes are protected under the RMA?	27
	Outstanding natural landscapes	30
	Natural character of the coastal and other water environments	31
	Areas of cultural/heritage significance	32
	Landscapes which contribute to amenity and/or environmental quality	33
	How are landscapes to be protected under the RMA?	34
5	Identification of Valued Landscapes	39
	How are landscapes assessed?	39
	Who assesses landscapes?	40
	What should a landscape assessment report contain?	41
	How can you participate in a landscape assessment?	42
6	Planning for Landscape Protection	43
	What are the components of landscape planning?	43
	Developing a vision	44
	Defining the nature and extent of landscape management issues	46
	Developing a strategy to address the issues and achieve the vision	46
	Identifying specific actions and mechanisms for implementing the strategy	50
	Implementing the strategy and monitoring progress	50
7	Planning Methods for Landscape Protection	53
	Location of important landscapes	55
	Methods to manage effects of specific activities	56
	Methods to manage density effects	58
	Methods to manage site specific effects	59
	Methods to encourage landowners	60
	Methods to encourage community involvement	61
	Combining methods	61

Part Three

Additional Resources

8	Useful Cases on Landscape Protection	65
9	Sources of Further Information	73

Foreword

New Zealand has a great diversity of landscapes of high quality which are worth protecting.

This publication is a valuable step towards enabling communities, professionals and developers to not only gain a better understanding of the elements that make up these landscapes and how they can be protected, but also of how change can be managed in ways that protect the quality of the landscapes that we all value.

This Guide, which is a companion guide to two others - one being a community guide to the RMA and the other on coastal development - has been produced by Raewyn Peart for the Environmental Defence Society. It gives practical and useful information on how to become part of the process of looking after the landscape, and how to go about protecting the landscape.

The Guide is divided into three parts. The first looks at the meaning of landscape - not an easy thing to define - and includes a series of photographs showing landscapes of high natural character, high rural amenity, iconic landscapes and heritage landscapes. It also includes pictures of how various developments and works can impact on the landscape.

This leads on to opportunities that the public have for involvement in the planning procedure. Particularly important are the processes through which regional and district plans are prepared - both the initial steps of plan formulation and later stages through which councils may amend the earlier concepts. The Guide includes a very useful landscape checklist, so that the public can assess whether the plans prepared by regional or district councils fulfill the responsibilities prescribed by the RMA. This section also gives the developer's perspective when contemplating land development that may impact on landscape values.

Part Two gives more detailed information on landscape protection - who is responsible for it and which landscapes are protected under the RMA. This is the more technical section of the Guide.

The third part gives very helpful summaries of recent Environment Court decisions in which landscape played a pivotal or key role. The Guide finishes with a list of further reading.

As a practicing landscape architect, I find this Guide an orderly and effective tool. I believe it will be immensely valuable for all those who are interested in the difficult and subjective area of managing the effects of change on landscape. And that includes the great majority of us.

Mary Buckland

July 2005

Preface

This Guide has been written for people who want to know more about landscape protection under the Resource Management Act 1991 (RMA). It provides information for those who would like to obtain better protection for landscapes which they value. It also provides information for people preparing resource consent applications (under the RMA) for proposals which may impact on landscape values.

The Guide focuses on the protection of landscapes on privately-owned land in rural areas. It does not address the protection of landscapes in urban areas.

Content of Guide

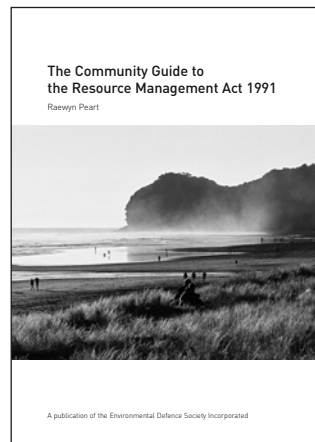
This Guide has been prepared in three parts:

- *Part One: Introduction to Landscape Protection* - provides an overview of the meaning of landscape, why landscapes are important, what can threaten them and how you can become involved in protecting them.
- *Part Two: Detailed Information on Landscape Protection* - provides additional material on landscape protection for those who require more technical information. It describes the provisions of the RMA on landscape protection and how they are applied, how valued landscapes can be identified, elements of landscape planning, and methods which can be used to protect landscapes.
- *Part Three: Additional Resources* – summarises several court decisions on landscape protection and identifies publications and websites where further information can be obtained.

Companion Guides

There are two companion volumes to this Guide:

- *The Community Guide to the Resource Management Act 1991* which provides basic information about participating in processes under the RMA.
- *The Community Guide to Coastal Development under the Resource Management Act 1991* which provides more detailed information on the management of coastal development.



Web-based versions of all Guides can be found at www.rmaguide.org.nz. Hard copies can be obtained from the Environmental Defence Society Incorporated, P O Box 95 152, Swanson, Auckland. See www.eds.org.nz for more details.

Disclaimer

The material in this Guide is provided in good faith, but with no guarantee as to it being comprehensive or accurate. The Guide is not a substitute for proper professional advice where that is needed.

Environmental Defence Society

The Environmental Defence Society is a non-profit environmental advocacy organisation consisting largely of resource management professionals. If you would like to find out more about the Society, or support its environmental programmes, please visit the Society's website at www.eds.org.nz.

Landscape issues have been a major part of the work of the Society. It has co-hosted two conferences which have focused on aspects of managing landscapes – *The New Zealand Landscape Conference* (2003) and *The New Zealand Coastal Conference* (2004). Proceedings from these conferences can be ordered from the Society's website and some papers can be downloaded from the site.

Acknowledgements

This Guide has been prepared by Raewyn Peart, Senior Policy Analyst for the Environmental Defence Society (EDS).

The Society wishes to acknowledge the Ministry for the Environment for providing financial assistance to support the preparation of this Guide and Neale Wills and Margaret Peart for assisting with its production.

The Society would also like to thank Di Lucas, Landscape Architect, Christchurch; Gina McDonald, Senior Adviser, Sharing Best Practice, Statutes Working with Local Government Group, Ministry for the Environment, Wellington; and Keir Volkerling, Consultant, Hikurangi, for providing peer review comments on the Guide.

Material on landscape planning in this Guide has been sourced from the EDS publication *'Landscape Planning Guide for Peri-urban and Rural Areas'*. EDS would also like to thank the people who contributed to the preparation of that document.

Any errors or omissions are, of course, the responsibility of the author.

Part One

Introduction to Landscape Protection

Frequently Asked Questions

What is ‘landscape’?

The term ‘landscape’ refers both to the broader physical environment and to how people perceive and appreciate that environment. The concept of ‘landscape’ includes both land and water areas, including the sea, lakes and rivers. Each landscape has its own individual character which is made up of many factors including landform, land cover, the presence of wildlife and human-made structures, and the interaction of people with the landscape over time.

Why are landscapes important?

Landscapes play an important role in our overall well-being. They contribute to our quality of life and sense of place. They support a range of economic activities including farming, forestry, horticulture, tourism and conservation. The histories of tangata whenua are written in the landscape. Their ongoing ability to associate with valued cultural landscapes is important.

What landscapes are protected under the RMA?

The RMA provides specific protection for outstanding natural landscapes, the natural character of the coastal environment and other water bodies, areas of heritage significance (heritage landscapes) and landscapes that contribute to the amenity of an area. Areas of significant indigenous vegetation and significant habitats of indigenous fauna, which may have important landscape values, are also protected. All landscapes are to be given some management consideration under the sustainable management purpose of the RMA.

How are important landscapes identified?

A landscape assessment exercise is often undertaken to identify landscapes that have important values. This will normally include describing the larger context within which they are to be assessed, describing the landscapes themselves, classifying them into

their component types and character areas, and evaluating the relative importance or value of particular landscapes.

What can threaten important landscapes?

Landscapes can be threatened by a range of different land uses and activities including:

- Buildings and structures
- Large infrastructure
- Earthworks and vegetation removal
- Monoculture forestry and other cultivation activities
- Poor land management practices

Who manages important landscapes under the RMA?

A number of bodies have different roles in managing landscapes under the RMA:

- The Minister of Conservation prepares a New Zealand Coastal Policy Statement (NZCPS), which sets out how the coastal environment, including coastal landscapes, should be managed. The Minister also approves regional coastal plans and restricted coastal activities.
- Regional councils prepare regional policy statements which may contain objectives and policies applying to landscapes throughout the region. They also prepare regional plans (including a regional coastal plan applying to the marine area) which may include objectives, policies and rules applying to landscapes. Regional councils are the consent authority for coastal, water and discharge permits which can authorize activities impacting on landscapes.
- Territorial authorities (city and district councils) prepare district plans which may include objectives, policies and rules applying to landscapes. They are the consent authority for land use and subdivision consents which can authorize activities impacting on landscapes.
- Iwi authorities can prepare iwi planning documents which may address landscape issues

How are important landscapes protected?

Important landscapes can be protected under the RMA through:

- Identifying a vision for landscapes and the mechanisms to achieve and manage that vision
- Identifying important landscapes on regional and district planning maps
- Including policies and objectives, in regional policy statements and regional and district plans, that provide for their protection
- Including rules in regional and district plans that control activities which can threaten important landscape values
- Ensuring that the impacts of proposed activities on important landscape values are adequately managed when resource consents are granted
- Providing incentives for land management and development that preserve important landscape values
- Incorporating 'good practice' design into developments impacting on valued landscapes

How can I help protect important landscapes?

You can help protect important landscapes through:

- Becoming involved in the landscape assessment process and providing information on what landscapes are of value to you and why
- Making submissions, when councils notify changes to regional policy statements and regional and district plans, seeking provisions that protect valued landscapes
- Making submissions, when policy statements and plans are reviewed (every 10 years), seeking provisions that protect valued landscapes
- Designing developments to protect important landscape values, if you are the developer
- Making submissions on resource consent applications for developments which impact on landscapes, seeking the protection of important landscape values
- Applying to change a regional or district plan, through the private plan change procedure, to strengthen landscape provisions
- Making submissions, when regional councils and territorial authorities prepare Long Term Council Community Plans, to incorporate your desired outcomes for valued landscapes within your community
- Making submissions, when your regional council or territorial authority prepares its Annual Plan, to ensure that adequate financial provision is made for landscape protection initiatives

Landscape Protection

What is 'landscape'?

'Landscape' is a concept which refers to the broader physical environment, including land and water areas, and people's perception and appreciation of that environment. Such appreciation is commonly expressed through the use of terms like 'wildness', 'character' and 'sense of place'.

The meaning of 'landscape'

Landscape is both a physical and a perceptual resource:

- The physical resource in an area is expressed in the landscape. Each area has its own unique character and identity, which reflect its physical, biological and cultural formation.
- Each area is perceived and experienced. The values people place on these areas are subjective, however many are widely shared, supported by research, or are already formally recognised by the community.
- Landscape as a human experience combines both aesthetic values and other values which humans attribute to landscape. Used in this sense, landscape is not only the physical appearance of land but also the subjective baggage each person carries with them - what they know, what they imagine and how they are disposed.
- Everyone's landscape is different. What we perceive depends on our experience, knowledge, expectation and role.

Lucas D, peer review note, 2005

People value different landscapes for varying reasons. Some landscapes are appreciated for their highly aesthetic natural values. These include such iconic landscapes as Milford Sound, Lake Wakatipu, the Southern Alps and the Central Volcanic Plateau, as well as areas of wild and relatively undeveloped coastline, mountains, high country, lakes and rivers.



Figure 2.1. Iconic landscapes, such as Mount Ruapehu and the Lower Tama Lake seen here, can be valued for their outstanding natural values.

Other landscapes are appreciated because of their unique or special character which has arisen from the interaction of natural and human influences over time. Such landscapes can become an integral part of the identity of local communities. They provide a strong sense of belonging to ‘our place’ for residents and regular visitors.

Māori have a unique relationship to land and landscape through whakapapa (genealogy), tīpuna (ancestors) and marae. The landforms trigger tribal stories and memories of ancestral feats, harvest areas and renowned tīpuna. Even where there has been marked change in the landscape through the influence of the built environment, remnant landscapes can trigger memories of what was once the papakāinga (housing areas on ancestral land).

Heritage landscapes, such as the Kerikeri Basin in the Bay of Islands, Akaroa Harbour on the Banks Peninsula, Young Nicks Head (Te Kuri) in Poverty Bay, Ngunguru Spit and Bannockburn in Central Otago, are valued because of their historic significance. They provide people with a physical link to the past.



Figure 2.2. Heritage landscapes, such as Akaroa Harbour on the Banks Peninsula seen here, are valued because of their historic significance.

Why should we look after landscapes?

Landscapes are important because they contribute significantly to our well-being and quality of life (see Figure 2.3). They provide the broader context within which we live our lives. Living within aesthetically pleasing and culturally meaningful landscapes enhances our sense of well-being.

Visiting largely undeveloped landscapes enables people to get back in touch with nature and to refresh their minds and bodies. Accessible natural landscapes within close proximity to urban areas, such as the Waitakere Ranges in Auckland and Banks Peninsula in Christchurch, play an important role in increasing the quality of life within those cities.

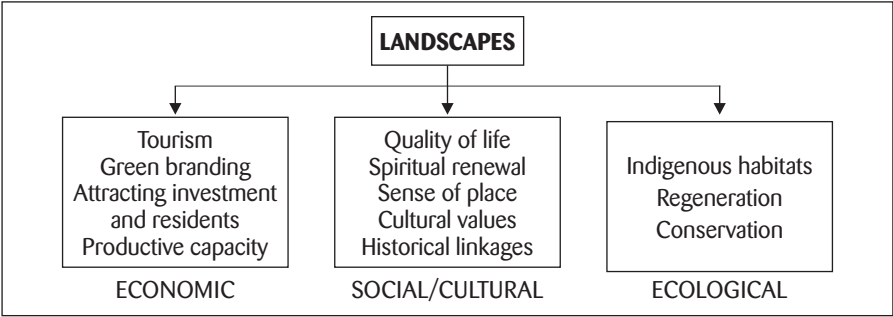


Figure 2.3. Why landscapes are important.

For tangata whenua, the ongoing ability to associate with valued cultural landscapes and to access natural resources within these landscapes for cultural harvest are important elements of cultural well-being.

Landscapes play an important economic role in directly supporting the tourism and film industries and adding value to exports through enhancing New Zealand’s ‘clean and green’ image. High quality landscapes can strengthen local economies by attracting residents and investment to an area, as well as tourists. Rural landscapes support a range of primary production activities such as farming, forestry and horticulture.

What can threaten valued landscapes?

Valued landscapes can be threatened by a range of different land uses including:

- (a) Buildings, structures and associated infrastructure which can singly or cumulatively intrude into and/or dominate a natural or cultural landscape



Figure 2.4. This picture illustrates how low-density housing, when consisting of large houses located in prominent positions and painted in light colours, can cumulatively dominate a rural landscape - Parau Bay, Whangarei Heads.

- (b) Large infrastructure which can intrude into and dominate natural landscapes



Figure 2.5. This picture illustrates how large electricity pylons can dominate a natural landscape - Desert Road, Waikouaiti.

- (c) Earthworks and vegetation removal associated with forestry or the construction of buildings, structures and infrastructure



Figure 2.6. This picture illustrates how the construction of access roads can scar a natural landscape - Bay of Islands.

- (c) Monoculture forestry and other cultivation activities which can introduce hard geometric lines and patterns into the landscape



Figure 2.7. This picture illustrates how a forestry plantation with straight edges introduces unnatural lines into a rural landscape - Banks Peninsula.

- (d) Poor land management practices such as:

- The removal of indigenous vegetation
- Over stocking
- Failure to exclude stock from natural waterways and coastal margins
- Undergrazing areas of indigenous vegetation
- Poor weed and pest control

Such practices can result in soil degradation, erosion and slumping, weed infestation, destruction of natural habitats and the degradation of river and coastal margins.



Figure 2.8. This picture illustrates how the removal of indigenous vegetation, and the failure to exclude stock from river margins, can degrade the natural character of the rural landscape - Hawkes Bay.

Promoting Landscape Protection

Actions taken by responsible landowners and developers, and concerned individuals and community groups, can have a significant impact on landscape protection. There are many opportunities for involvement in landscape protection issues through the planning, design and resource consent processes.

Opportunities for involvement

Concerned members of the public can promote landscape protection within a region or district by becoming involved in the following processes:

- *Changes to regional policy statements, regional plans and district plans.* Councils frequently introduce proposed changes to policy statements and plans (these are known as variations, if the proposed district plan is not yet operative). Such changes are often prompted by the identification of weaknesses in the current policy statement or plan or the availability of new information. Such proposed changes are publicly notified and anyone may lodge a submission and present their views to a subsequent council hearing.
- *Review of policy statements and plans.* Every regional policy statement and plan and district plan is required to be fully reviewed and publicly notified at least 10 years after it has become operative. This provides the opportunity to revisit all the plan's provisions, which become open to public submission.
- *The private plan change procedure.* This enables anyone to apply to change a regional or district plan, although this can only normally be done after the plan has been operative for two years. Such a plan change can be an expensive process for the party proposing the change, as they are required to prepare the detailed wording of the proposed plan provisions as well as undertake an evaluation of the benefits and costs of the changes and an assessment of their environmental effects. Alternatively, if you identify significant weaknesses in the plan you can approach the council and request it to initiate a plan change.
- *Resource consent applications.* These may be lodged to authorize activities which impact on landscape values. If such applications are publicly notified, you will have the opportunity to lodge a submission and to present your views at a subsequent council hearing of submissions. If an application is not publicly notified, but you are directly affected by the proposed activity, you will still

have the opportunity to make a submission if the application receives 'limited notification'.

- Preparation of *Long Term Council Community Plans (LTCCPs)* under the Local Government Act 2002. These cover at least 10 years and describe the community outcomes being sought over the period. The purpose of the LTCCP is to provide a long-term framework within which the council's annual planning and budgeting can take place. The preparation of the LTCCP is required to be undertaken through a consultative process involving interested members of the public. This provides the opportunity for you to participate in the identification of desired future outcomes for your district, including outcomes for landscapes.
- Preparation of *Annual Plans* under the Local Government Act 2002. These contain a council budget for the year, which makes financial provision for expenditure on infrastructure and other council services. Stakeholders have the opportunity to make submissions on the plan and can seek funding provision for landscape protection initiatives.

More detailed information on how to lodge submissions in respect of proposed plan provisions and resource consent applications, and how to initiate a private plan change procedure, are contained in *The Community Guide to the Resource Management Act 1991* (available at www.rmaguide.org.nz).

Landscape provisions in plans

There are a number of provisions which can be incorporated into regional and/or district plans in order to protect valued landscapes. Some of these are described in the landscape checklist set out below. When considering what issues to raise in submissions on proposed plan provisions, it may be useful to assess them against this checklist.

Landscape checklist for regional and district plans

- Does the plan clearly identify the spatial boundaries of outstanding natural landscapes, and landscapes with cultural, historic, natural character and/or amenity value within the district (either as part of the planning maps or on a separate map)? Are all important landscapes identified?
- Does the plan indicate on what basis these areas have been identified, i.e. what methodology and information were used?
- Does the plan describe the values that make each of these areas important and that the plan seeks to protect in the future?
- Does the plan describe the threats to each of these landscapes or landscape types and indicate the relative importance of each threat?
- Do the objectives in the plan clearly state the future desired outcome for each landscape or landscape type in sufficient detail to make it clear what activities are likely to be inappropriate in the area?
- Do the policies make it clear how the future outcomes will be achieved, including what effects should be avoided within specific landscape areas, and how this will be achieved?
- Will the rules and other methods to be adopted be sufficient to ensure that these undesirable effects are avoided and the future outcomes achieved?
- Do the rules sufficiently control landscape impacts of individual development proposals? For example, do they exclude buildings, infrastructure, forestry and other activities with significant landscape impacts from sensitive areas such as headlands, ridgelines and view shafts? Do they ensure that such activities are integrated into the landscape through controlling aspects like building design, colour, location, landscaping, vegetation clearance and earthworks? Do they ensure that buildings and structures are compatible with any heritage or amenity values of the area?
- Do the rules sufficiently control cumulative impacts on valued landscapes? For example, are subdivision and the density of buildings adequately controlled within important landscape areas?
- Do the rules provide some certainty of protection for valued landscapes? For example, do the rules identify activities that are clearly inappropriate in valued landscape areas as non-complying (or prohibited) activities and does the plan clearly state that such activities would be contrary to the objectives and policies of the plan?
- Do the methods identified in the plan provide incentives for voluntary actions to protect and enhance valued landscape areas, such as covenanting land against future subdivision, fencing areas of indigenous vegetation, replanting of indigenous vegetation, protecting riparian margins and protecting heritage sites?
- Does the plan indicate how the effectiveness of the plan in protecting valued landscapes will be monitored and how plan provisions will be reviewed in light of the monitoring information?

Landscape considerations for development design

Developer perspective

When contemplating land development that may impact on landscape values, landscape considerations should, wherever possible, be incorporated as an integral part of the design process.

A good starting point when beginning to design a development in a rural area is to examine the applicable regional policy statement, district plan and regional coastal plan (where the site is on the coast), to identify whether the site, or any part of it, has been identified as having important natural, heritage or amenity landscape values.

It is advisable, at an early stage, to meet with council planning officers and consult the regional and district plans to identify whether or not you will require a resource consent for the development and, if so, what criteria will be applied when the application is assessed. See *The Community Guide to the Resource Management Act 1991* for additional information on identifying whether a resource consent is required for a development and on preparing a resource consent application if one is required.

It is also advisable to consult early on with affected parties, including neighbours, iwi and local community organizations, to identify any issues they may have concerning the development of the site and potential landscape impacts. This will enable concerns to be addressed as the proposal is developed, help build positive relationships and help to avoid surprises later on if strong opposition to the proposal is expressed. The council should be able to provide contact details for potentially affected parties and local iwi.

If the development is located within an outstanding or valued landscape area, as identified in the planning documents or through consultation, you will need to consider whether to proceed with developing a proposal, as any development may not be appropriate. If you do go ahead, you will need to design the development to minimise impacts on these landscape areas. The district plan may have rules and criteria to guide you.

If you require a resource consent to proceed with the development, you will also need to undertake an assessment of the effects of the proposal on landscape values, as part of the assessment of effects which will accompany your resource consent application.

Where you require a resource consent, landscape design advice and impact assessment will generally need to be provided by someone with expertise in the field, such as a landscape architect. The New Zealand Institute of Landscape Architects has a list of registered landscape architects who can assist (see www.nzila.co.nz). If the development potentially impacts on landscapes and other resources of importance to

tangata whenua, you may need to commission a cultural impact assessment from local iwi to accompany your resource consent application.

A checklist of general matters which can be addressed to reduce the landscape impacts of your development is shown below. Useful guides which contain more detailed information on designing development to reduce landscape impacts have been produced by the Queenstown-Lakes District Council, the Rotorua District Council and the Wairarapa Coastal Strategy Group (see Chapter 9). An integrated approach to sustainable design in coastal landscape environments, which addresses a range of considerations wider than just landscape, is contained in *The Community Guide to Coastal Development under the Resource Management Act 1991*.

Look for win-win design solutions where you can provide public as well as private benefit. This may, for example, be through revegetating open spaces with indigenous species and covenanting these areas to prevent future subdivision. Such an approach provides a public benefit of restoring land and restricting future levels of development, as well as potentially increasing the value of the property itself to potential purchasers through increasing its environmental amenity.

Submitter perspective

If you are concerned about a proposed development, and are deciding whether to lodge a submission to its resource consent application, a good starting point is to find out if the area is identified as an outstanding landscape or landscape of value in the regional policy statement, regional coastal plan or district plan.

If the development is in an area identified as having important landscape values, find out what objectives, policies and assessment criteria are in the plan to manage the landscape and assess whether the proposed development is consistent with these provisions. The resource consent application will normally identify the plan provisions which are relevant to the proposal. It may be helpful to seek the advice of a council planning officer in order to fully understand the implications of the proposal.

When identifying the potential impacts of the development on landscape values, you may wish to assess the development against the checklist shown below. If there are aspects of the development which are of concern to you, contact the developer as soon as possible to discuss your concerns and to identify if they can be resolved. If they are not addressed, raise them in your submission on the resource consent application and, where possible, indicate what changes you would like to see.

General information on preparing and presenting submissions to resource consent applications is available in *The Community Guide to the Resource Management Act 1991*.

Landscape checklist for development

- Are the proposed buildings or infrastructure located within outstanding natural landscapes or landscapes with cultural, historic, natural character and/or amenity value? If so, are they located and designed to avoid negative impacts on landscape values?
- Do the buildings and infrastructure avoid highly visible locations such as ridgelines, headlands, significant view lines and culturally sensitive areas?
- Are the buildings and structures designed so that they are absorbed by the landscape and are not visually prominent?
- Are the buildings located in areas with a higher potential to absorb development, leaving more sensitive areas as open space?
- In rural areas, is the density of development on a rural scale rather than an urban one?
- Do the buildings positively reinforce the rural setting through adopting a scale, a design and materials which visually integrate (as opposed to an approach which seeks to make a dominant statement)?
- Are the buildings and structures designed to be sensitive to any natural character, amenity or heritage values of the site?
- Does any proposed fencing, planting, or driveway follow natural contours, lines and patterns?
- Does the proposal provide for the retention and/or re-establishment and management of indigenous vegetation?
- Does the proposal protect open space, heritage sites and/or areas of indigenous vegetation from future development, through mechanisms such as covenanting?
- Have cumulative effects of the proposal, in the context of current and likely future development in the area, been assessed and addressed? Will it exceed the carrying capacity of the area?

Permanent protection

Sensitive or important landscape areas can be permanently protected by several mechanisms, which can restrict subdivision, development and other activities that threaten landscape values, including:

- A *restrictive covenant*, which is registered on the certificate of title of the land, in favour of adjacent or nearby land
- A *memorandum of encumbrance*, which is a form of mortgage registered on the title of the land and creates a rent charge in favour of another party, which is not enforced if the landowner complies with a covenant not to subdivide the land.

This can be used when there is no suitable adjacent land to receive the benefit of a restrictive covenant.

- A *conservation covenant* under the Reserves Act 1977, which can be used to preserve the natural environment or landscape amenity
- An *open space covenant* under the Queen Elizabeth the Second National Trust Act 1977, which can be used to preserve any landscape of aesthetic, scenic or social interest or value.
- A *heritage covenant* under the Historic Places Act 1993, which can be used to protect an historic or wāhi tapu place or area
- A *condition of a resource consent*, which restricts future subdivision or use of land and which is noted on the certificate of title through a consent notice
- *Public purchase* by the council or other government agency

Funding for the direct purchase of areas, covenanting and management may be available from the Nature Heritage Fund. Funding is available from Nga Whenua Rahui for fencing, covenanting and the establishment of Māori Reservations on Māori land.

Part Two

Detailed Information on Landscape Protection

Landscape Protection under the RMA

Who is to protect landscapes under the RMA?

The RMA provides a role for the Minister for the Environment, the Minister of Conservation, regional councils, territorial authorities and iwi authorities in landscape management and protection (see Figure 4.1).

Minister for the Environment <i>National Policy Statement (optional)</i> National landscape objectives and policies	Minister of Conservation <i>New Zealand Coastal Policy Statement (mandatory)</i> National coastal landscape objectives and policies Approval of regional coastal plans Deciding applications for restricted coastal activities
Regional Councils <i>Regional Policy Statement (mandatory)</i> <i>Regional Coastal Plan (mandatory)</i> <i>Regional Plans (optional)</i> Regional landscape objectives and policies Resource consent authority (coastal, water and discharge permits)	
Territorial Authorities <i>District Plan (mandatory)</i> District landscape objectives, policies and methods (including rules) Resource consent authority (subdivision and land use consents)	
Iwi Authorities <i>Iwi planning documents (optional)</i> Landscape management values and issues of importance to iwi	

Figure 4.1. Responsibilities for landscape management under the RMA.

Minister for the Environment

The Minister for the Environment has the power to develop national policy statements, stating objectives and policies and providing guidance on matters of national significance, including the management of outstanding natural features and landscapes (section 45). To date there is no national policy statement to give national guidance on landscape management and there is no statement currently being prepared. Work has been undertaken to prepare a national policy statement on indigenous biodiversity and this may address some aspects of landscape management.

Minister of Conservation

The Minister of Conservation is charged with preparing a New Zealand Coastal Policy Statement (NZCPS), which contains policies applying to landscapes in the coastal environment. The current NZCPS became operative in 1994 and is currently under review. It provides for the protection of landscapes and seascapes that are essential or important elements of the natural character of the coastal environment.

The Minister approves regional coastal plans, which apply to the coastal marine area (extending 12 nautical miles seawards from mean high water springs). The Minister also determines applications for restricted coastal activities. These are activities within the coastal marine area that have been identified as having a significant or irreversible adverse effect, such as large reclamations and marine structures.

Regional councils

Regional councils have the role of preparing 'objectives and policies' in relation to 'regionally significant' effects of the use, development or protection of land' (section 30(b)). This is largely achieved through the preparation of a regional policy statement and/or regional plans, although regional councils can also use a range of non-statutory mechanisms.

A regional policy statement must state 'the significant resource management issues for the region' and 'the resource management issues of significance to iwi authorities in the region'. It is then required to state the objectives sought to be achieved by the statement and policies for the issues and objectives, amongst other things (section 62).

As landscape protection is identified as a matter of national importance in section 6 of the RMA, landscape management would usually be considered to be a significant resource management issue for a region and be addressed in the regional policy statement. A regional landscape plan could be prepared to assist with implementing the policy statement.

Regional councils are the consent authorities for water permits and discharge permits and are the prime consent authority for coastal permits, which can authorize activities undertaken within the coastal marine area.

Territorial authorities

Territorial authorities are charged with controlling the 'effects' of the use, development or protection of land (section 31(b)) including effects on landscapes. The main mechanisms at their disposal to achieve this are objectives, policies and rules in the district plan and the processing of resource consent applications. Non-statutory mechanisms such as financial incentives and education can also be used.

Amongst other things, territorial authorities can grant subdivision consents authorizing the subdivision of land, and land use consents authorizing the building of structures and the disturbance of indigenous habitats.

Because many impacts on landscape result from land use activities, territorial authorities play a very significant role in terms of landscape management.

Iwi authorities

Iwi authorities may prepare iwi planning documents which can address cultural landscape values and issues. When preparing policy statements and plans, regional councils and territorial authorities must 'take into account any relevant planning document recognised by an iwi authority, and lodged with the authority, to the extent that its content has a bearing on resource management issues of the district' (sections 61(2A), 66(2A) and 74(2A)).

In practice, iwi planning documents appear to have had little impact on the content of district plans in respect of landscape and other issues. This is likely to change as capacity is built both within iwi authorities to develop such documents and within territorial authorities to understand and interpret them.

What landscapes are protected under the RMA?

The RMA provides the overall legal framework within which the use of land and water, and other activities which may impact on landscapes, are managed. It is therefore a key piece of legislation for people concerned with landscape protection.

The term 'landscape' is not defined in the RMA. The Environment Court has indicated that a precise definition of 'landscape' under the RMA cannot be given, but that the elements of a working definition include¹:

¹ *Wakatipu Environmental Society Incorporated and ors v Queenstown-Lakes District Council* [2000] NZRMA 59, paragraphs 77 and 78.

- Landscape involves natural and physical resources, including land, water, air, plants, animals and structures, and various factors relating to the viewers and their perception of the resources.
- Landscape provides a linkage between individual natural and physical resources and the environment as a whole, through considering a group of such resources together, and emphasising that our attitudes to these resources are affected by social, economic, aesthetic and cultural conditions.

These definition elements acknowledge that landscape is not a single resource such as 'soils' or 'vegetation'. It is an integrative concept which is applied to the management of a group of resources and incorporates the human values associated with them. These resources include areas of water, such as sea and lakes, as well as those on land. Human values associated with landscapes are not only visual but include other sensory elements and associations.

The Environment Court has also indicated that the concept of landscape under the RMA includes more than just visual considerations². This is made clear by the wording of clause 2(b) in the Fourth Schedule of the Act, which states 'any physical effect on the locality, including any landscape and visual effects' (underlining added). The separate reference to 'landscape' as opposed to 'visual' effects indicates that the two terms have different meanings in the Act.

The RMA only explicitly refers to one category of landscape, 'outstanding natural features and landscapes' (section 6(b)). The protection of these landscapes must be recognized and provided for in all processes and decision making under the RMA as a matter of national importance.

Other provisions in section 6 and 7 of the Act do implicitly incorporate landscape planning considerations. Landscape is also a matter to be considered when preparing an assessment of effects on the environment as part of a resource consent application³.

From an analysis of the Act, it is possible to identify four broad categories of landscapes which should receive special management attention under the RMA (see Figure 4.2):

- Outstanding natural landscapes
- Landscapes which contribute to amenity and/or the quality of the environment
- Areas of the coastal environment and water bodies with high natural character
- Areas with cultural or heritage significance

In addition, section 6(c) of the RMA provides for 'the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna'. Such vegetation and habitats may have landscape significance as well as being important in scientific and other ways.

² *Campbell and others v Southland District Council* W114/94, page 32.

³ Clause 2(b), Fourth Schedule, RMA.

These categories are overlapping and interconnected and may not always have distinct boundaries.

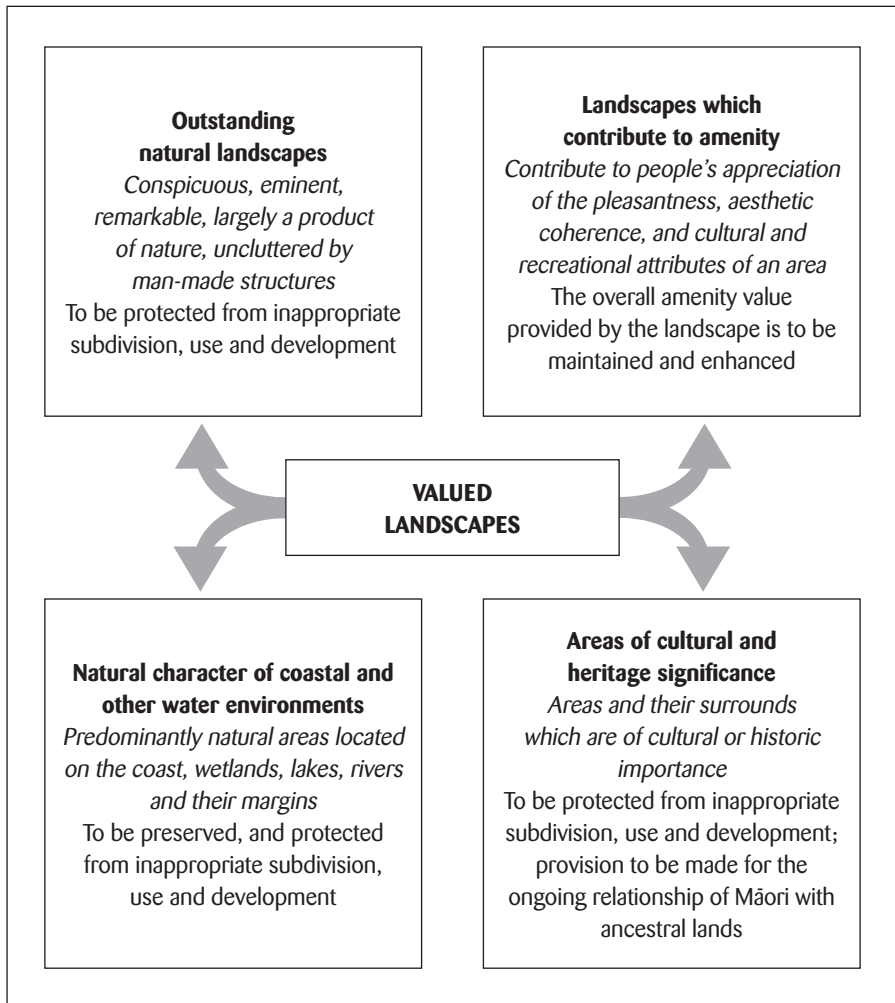


Figure 4.2. Landscape management categories.

Outstanding natural landscapes

‘Outstanding natural features and landscapes’ are to be protected from ‘inappropriate subdivision, use, and development’ under section 6(b) of the RMA. All persons exercising powers and functions under the Act are required to ‘recognise and provide for’ such protection.

The Environment Court has indicated that a landscape will be considered outstanding under the RMA if it is conspicuous, eminent or remarkable within the context of the district⁴ or region.

What is ‘outstanding’ is to be determined through an assessment at the level of decision making. A district council, when considering what are its outstanding landscapes, is to make that assessment on the basis of comparison with other landscapes within its district. Similarly a regional council identifies what landscapes are outstanding in relation to others within the region⁵.

These different frames of reference may result in variable outcomes depending on the circumstances. Where the whole or a large part of a district is identified nationally or regionally as an outstanding landscape, the area identified as outstanding at a district level is likely to be smaller. For example, although a regional landscape assessment identified the entire Banks Peninsula as a regionally outstanding landscape, the district council identified much smaller portions of the district as outstanding.

What is ‘natural’ has been defined by the Environment Court as being something which is a ‘product of nature’. It can therefore include pasture and exotic tree species but not man-made structures. It depends on the naturalness of the context. A landscape with structures may still have a degree of naturalness but it will be less ‘natural’ than an unaltered landscape or a landscape without structures⁶.

A natural landscape is likely to include:

- Evident physical landform and relief
- Lack of a clutter of structures and/or ‘obvious’ human influence
- Presence of water (lakes, rivers, sea)
- Presence of vegetation (especially native vegetation) and other ecological patterns⁷.

Case law interpreting the RMA provides no clear guidance on what is ‘inappropriate subdivision, use and development’ in outstanding natural landscapes. Inappropriate use or development is likely to occur where the values that contribute to the outstanding qualities of a natural feature or landscape will be adversely affected. The appropriateness of the use will be affected by:

- The scientific, aesthetic, social or cultural vulnerability of the affected resource

4 *Wakatipu Environmental Society*, see note 1, paragraphs 82 to 85.

5 *Wakatipu Environmental Society*, see note 1, paragraph 84.

6 *Wakatipu Environmental Society*, see note 1, paragraphs 88 and 89.

7 *Ibid*.

- The characteristics of the proposed use or development, such as scale, intensity, design or specific siting⁸

Some district plans, such as the Queenstown-Lakes District Plan, have detailed assessment criteria to help determine what development may be appropriate in a particular landscape. Where this is not the situation, appropriateness is determined largely on a case by case basis through assessing the extent to which a proposed activity will impact on the values that have been identified as making the landscape outstanding in the first place.

Natural character of the coastal and other water environments

The natural character of the coastal environment, wetlands, and lakes and rivers and their margins is to be preserved and protected from inappropriate subdivision, use and development under section 6(a) of the RMA.

As with 'landscape', the term 'natural character' is not defined in the RMA. Case law and professional practice indicate that it is comprised of three main elements: natural processes, natural elements and natural patterns (see Figure 4.3). Natural processes include the action of rivers, waves, tides, wind and geological as well as ecological processes. Natural processes produce natural elements including landforms and vegetation cover. The distribution of these natural elements over space forms natural patterns⁹.

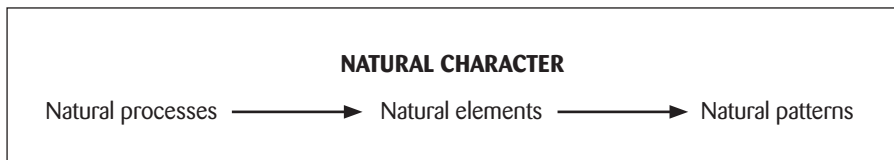


Figure 4.3. Elements of natural character.

The word 'preserved' in section 6(a) suggests the need to maintain natural character in its existing state, whereas the word 'protected' indicates a requirement to guard it against a threat. The former is a higher standard than the latter.

Although all parts of the coastal and other water environments have some natural character which needs protection, natural character is most likely to be preserved or highly protected where the environment is predominantly natural and free from human influences. This means that landscapes within the coastal and other water environments with a high degree of natural character are probably afforded greater protection under the RMA than other landscapes¹⁰.

⁸ Boffa Miskell and Lucas Associates, *Canterbury Regional Landscape Study*, Volume 1, page 10.

⁹ See Maplesden R and Boffa Miskell, 2000, *Natural Character: Concept Development in New Zealand Law, Planning and Policy*, Environment Waikato, pages 92-93.

¹⁰ Ibid, sections 3.3 and 3.4.



**Figure 4.4. Areas of high natural character are to be protected
- Ocean Beach, Kawhia.**

The New Zealand Coastal Policy Statement provides that landscapes, seascapes and landforms which are essential or important elements of the natural character of the coastal environment should be protected (policy 1.1.3). In addition, landscape features, as well as areas of historical, spiritual or cultural significance in the coastal environment, should be identified and given special protection (policy 3.1.2).

There is considerable overlap between the concepts of natural character and landscape. They do however have different emphases. 'Natural character' emphasises the importance of natural processes whereas 'landscape' stresses the importance of public perceptions of a group of natural resources.

Areas of cultural/heritage significance

'Historic heritage' is to be protected from inappropriate subdivision, use and development under section 6(f) of the RMA. 'Historic heritage' is defined in the Act as including historic sites, structures, places and areas; archeological sites; and sites of significance to Māori, including wāhi tapu (sacred sites) and their surroundings.

The definition under section 6(f) indicates that the surroundings associated with historic places and sites of significance to Māori are part of historic heritage, but does not explicitly refer to the broader concept of historic or cultural (heritage) landscapes. However, the scope of section 6(f) may include landscapes which consist of culturally or historically significant areas and their surrounds. This issue of interpretation has yet to be determined by the courts.

In addition to section 6(f), provision is to be made, under section 6(e), for the relationship of Māori and their culture and traditions with their ancestral lands, water, sites, wāhi tapu, and other taonga (treasures). What is of outstanding value to tangata whenua can be easily overlooked. Many local landscapes that are significant to local lore, custom and practice, and which embody a significant aspect of cultural identity and rangatiratanga (authority), are not overly dramatic or outstanding in Western cultural terms. They need to be neither dramatic nor outstanding, however, to be protected under sections 6(e) and (f).

Heritage landscapes are those that reflect past interactions between people and the land and that are significant to communities, tangata whenua and/or the nation as a whole. They encompass both natural and cultural heritage dimensions. They include¹¹:

- Physical structures
- Changes made to the environment by people
- Natural landforms modified by human action
- Natural settings to historic events and places
- The meanings given to places
- Stories told about those places

Landscapes which contribute to amenity and/or environmental quality

Landscapes which contribute to amenity and the quality of the environment are implicitly given special recognition under sections 7(c) and (d) of the RMA, where all persons exercising powers and functions under the Act are required to have particular regard to 'the maintenance and enhancement of amenity values' and the 'maintenance and enhancement of the quality of the environment'.

These landscapes include ones which contribute to people's appreciation of the pleasantness, aesthetic coherence and cultural or recreational attributes of an area, as well as those which contribute to the functioning of ecosystems. They include many of our 'working' rural production landscapes.

The 'amenity values' which are to be maintained and enhanced under section 7(c) are much wider than just visual, and include values associated with other senses such as sound, smell, warmth, touch, movement and space¹².

Unlike outstanding natural landscapes which are to be protected, there is no presumption that landscapes which contribute to amenity and environmental quality will be retained in their current state¹³. Such landscapes may continually change as rural

11 New Zealand Historic Places Trust, 2003, *Heritage Landscapes Think Tank: Report on Proceedings*, NZHPT, Wellington.

12 Findlay C, 2004, 'Protecting the landscape: natural character, landscape features and amenity issues', in R Harris (ed) *Handbook of Environmental Law*, Royal Forest and Bird Protection Society of New Zealand Inc, Wellington, page 492

13 *Wakatipu Environmental Society*, see note 1, paragraph 91.

economies evolve and land uses and settlement patterns modify over time. Change is to be carefully managed, however, to ensure that the overall amenity and environmental quality of the area is maintained or enhanced. This may include ensuring that areas of special natural or cultural value and sensitive visual areas, such as ridgelines, headlands and routes, are protected and that ecological 'patches' and connective corridors, such as those along waterways, are enhanced.



Figure 4.5. The amenity and environmental quality of working landscapes are to be maintained and enhanced - Rodney District.

How are landscapes to be protected under the RMA?

There are several mechanisms available under the RMA to protect valued landscapes. These include developing objectives and policies in policy statements and plans, developing regional and district rules, processing resource consent applications and promoting voluntary initiatives (see Figure 4.6).

Development of objectives and policies in policy statements and plans

The objectives and policies in RMA planning documents set out the framework within which decision making on specific activities takes place. The objectives set out the desired environmental state or goal for a particular landscape. The policies describe the means by which that goal will be achieved.

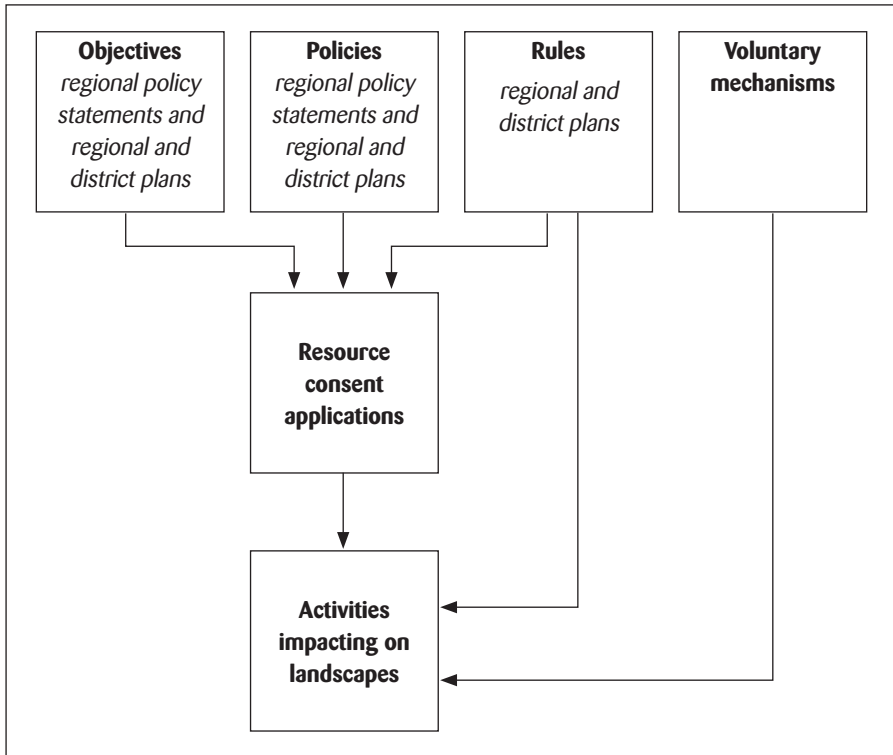


Figure 4.6. Mechanisms to protect landscapes under the RMA.

Objectives and policies in regional policy statements impact on landscape protection through the legal requirement that district plans not be inconsistent with them (section 75(2)). This is proposed to be changed to 'give effect to' through amendments to the RMA.

Regional and district plan objectives and policies have more direct effect. When a resource consent is sought for a non-complying activity, the application may not be approved if the proposed activity is contrary to the objectives and policies in the plan or if the adverse effects of the activity on the environment are more than minor (section 104D).

It is therefore important for the wording of objectives and policies within plans to be precise and to clearly indicate which activities are likely to be consistent and inconsistent with them. Where possible, it is helpful if they explicitly state what is considered to be contrary to the objective and policies of the Plan so there is no doubt. See the following example:

Subdivision and development below an average lot size of 2 hectares has the potential to have significant adverse effects on the regionally significant values and unique characteristics of the Mangemangeroa catchment. Due to the significant potential adverse effects, which may occur, subdivision and development with an average lot size of less than 2 hectares would be contrary to the objectives and policies of the District Plan and therefore shall be avoided. (Manukau Operative District Plan 2002, Chapter 12 Rural Areas, page 21 (underlining added)).

Development of regional and district rules

Rules in plans determine what activities can be carried out on land without consent, what activities require a resource consent before they can be undertaken and what matters will be considered when a decision is made on a resource consent application. Rules therefore provide the most direct control over activities which may impact on landscapes. Regional plans generally deal with activities which may impact on soils and water quality, and indirectly on landscape values, such as earthworks and vegetation clearance. Regional coastal plans, which address activities in the coastal marine area, have a direct impact on protecting coastal landscapes and seascapes. District plans deal directly with the use of land, the establishment of buildings and infrastructure on land, and subdivision. Such activities can have a major impact on natural and cultural landscapes. Mechanisms that can be implemented through rules are described in more detail in chapter 7.

Processing of resource consent applications

Decisions as to whether or not to grant approval to resource consent applications have a major effect on landscape values, as they determine whether or not an activity can go ahead. There is broad discretion under the RMA for consent authorities (generally the council) to assess the potential environmental effects of a proposal, and to grant or decline consent and, where consent is granted, to impose conditions.

Promotion of voluntary mechanisms

Landscapes look the way they do because of the way the land, sea and water bodies are managed. The promotion of voluntary mechanisms to protect landscape values can have a significant impact on future landscape change. These mechanisms can include covenanting land against future subdivision and buildings; fencing stock out of areas of indigenous revegetation, streams and lakes; and controlling weeds and pests. Communities can work together on landscape protection initiatives such as dune and stream restoration, fencing, and weed and pest control. Councils can provide financial

and technical support for these initiatives. Councils can also provide incentives, such as rates relief, to promote voluntary landscape protection.

Identification of Valued Landscapes

How are landscapes assessed?

The prime mechanism for identifying valued landscapes is undertaking a landscape assessment exercise. Although these assessments may be carried out in different ways, they will normally incorporate four distinct components: contextual description, landscape description, landscape characterisation and landscape evaluation (see Figure 5.1).

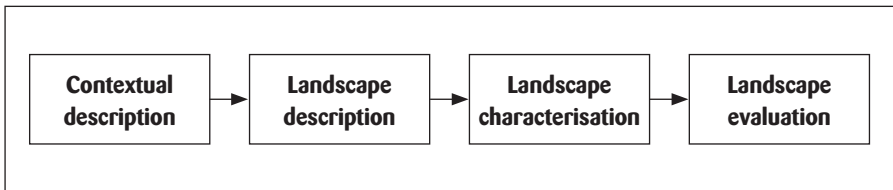


Figure 5.1. Components of landscape assessment.

The purpose of the *contextual description* is to describe the larger context within which the landscape assessment is being undertaken. This can include describing the history of the area, human occupation and cultural associations with the area, any relevant government policy and broader physical and biological processes.

The *landscape description* involves describing the natural and cultural character, patterns and processes of the landscape under study. It can include describing the landscape in terms of its land form, land cover, presence of water bodies, landscape features, landscape patterns and structure, history, cultural and social associations and shared values.

Landscape characterisation involves the use of professional judgement to ‘make sense’ of the descriptive material collected. It also involves classifying the landscape into its component types and character areas. This is a critical step, because it orders the information into a framework, which is then used in the subsequent landscape evaluation. It can therefore have a significant impact on which landscapes are identified as important within the district.

This step typically involves identifying each landscape character type or area on a map. This is usually accompanied by a written description (accompanied by illustrative photographs) of the key characteristics of each area, which results from

the combination of elements which help give it a distinct character. The description of characteristics will often become a significant reference point when making decisions about the future of the landscape and monitoring subsequent changes.

The underlying geomorphological composition of land can provide an effective basis on which to categorise difference landscape types, as such classification is based on physical characteristics which can be readily identified and are not vulnerable to change over time.

During *landscape evaluation*, the relative importance or value of particular landscapes is determined as the basis for guiding their future management. It is highly desirable that community consultation is undertaken at this stage, in order to incorporate public values into the evaluation process as well as to verify the results of that process. This will help to identify different values attached to different landscapes by different groups of people. Landscape value can be assessed using range of factors (see below).

Criteria for assessing landscapes under the RMA

- *Natural science factors* including the geological, topographical, ecological and dynamic components of landscape
- *Aesthetic values* including memorability and naturalness
- *Expressiveness* (legibility) which is how obviously the landscape demonstrates the formative processes leading to it
- *Transient values* which includes the occasional presence of wildlife, or its values at certain times of the day or of the year
- Whether the *values are shared and recognised*
- Value to *tangata whenua*
- *Historical* associations.

Wakatipu Environment Society (note 1, paragraph 72)

Who assesses landscapes?

Not many councils have landscape assessment expertise in-house. The council will normally contract an outside landscape assessment team to undertake the exercise. The team will often be led by a landscape architect, but will normally require a broad range of expertise including skills in:

- Visual assessment
- Natural sciences (geomorphology and ecology)
- Historical / cultural / social landscape associations

- Public consultation
- Iwi consultation

At the end of the day, landscape assessment is about identifying which landscapes are valued by people. It is therefore important that the assessment team includes members skilled in identifying public perceptions and the values attached to landscapes by different groups of people within the district.

What should a landscape assessment report contain?

The methodology adopted to undertake a landscape assessment can have a significant impact on the outcome and which landscapes are identified as meriting protection. It is therefore important that a landscape assessment report describes clearly what methodology has been adopted, why it has been adopted and any limitations of the methodology which should be taken into account when interpreting the results. As well as setting out the findings of the landscape assessment, the report should normally set out:

- *Overall objective of the assessment* – what it was intended to achieve and how it will contribute to achieving the requirements for landscape protection and management under the RMA
- *Scope of the assessment* – including what spatial area the assessment covered and what elements of landscape were assessed, such as visual, cultural, historical, geomorphological and ecological aspects
- *Stakeholders in the assessment* – identifying who they are and how they were involved in the assessment
- *Methodology adopted for the assessment* – describing the methodology and how it will meet the overall objective of the assessment, and describing what judgements were made, who made them and how they were made
- *Sources of information drawn on for the assessment* – which may include published and unpublished documents, creative works including paintings and writings, previous landscape assessments, data sets, survey results, field observations and consultation exercises
- *Limitations of the assessment* – which may include lack of suitable data or inherent limitations in the methodology adopted. The implications of the limitations for the subsequent application of the study's findings should be identified.
- *Interpretation of assessment findings* – how the findings will be used to develop a landscape management strategy and implementation mechanisms

How can you participate in a landscape assessment?

A landscape assessment exercise is primarily focused on identifying what landscapes people value within the area being studied. It is therefore important that people with an interest in the landscapes being evaluated are actively involved in the assessment process. This is to ensure that the assessment is not a superficial visual assessment undertaken by experts alone, but is informed by the perceptions and values of the community of interest, both near and far.

You may become aware that the council is intending to undertake a landscape assessment through material in the council's newsletter or on its website; through notices or articles in local newspapers; or through financial provision being made for the exercise in the council's Annual Plan.

Areas where you might become involved include:

- *Formulating the brief for the assessment* – the landscape assessment brief is an important document because it will set out the scope of the assessment, the methodology to be adopted and the extent to which stakeholders will have input into the process. If you become aware that the council is proposing to undertake a landscape assessment, you could request that it provides you with a draft of the brief before it is finalised, so that you can contribute input into these key issues.
- *Providing contextual information for the assessment exercise* - the landscape assessment exercise is undertaken within the historical, social and cultural context of the area. You may be able to provide the assessment team with valuable information about the way local communities and tangata whenua have related to landscapes within the area over time. This will be important in framing the subsequent evaluation exercise.
- *Indicating your preferences for different specific landscapes and different landscape types within the study area* – the landscape evaluation exercise is designed to identify the value which people place on different landscapes, and which landscapes are most highly valued and therefore merit special protection or management effort. Community members should therefore be given an opportunity to provide information about which landscapes they value and why. Such an opportunity may be provided through undertaking surveys or one-on-one interviews and convening stakeholder meetings, hui, focus groups or workshops.
- *Preparation of an iwi management plan* – the preparation of an iwi management plan addressing landscape values and issues is a mechanism through which iwi can proactively identify and express what is important to them about landscapes within the study area.

6

Planning for Landscape Protection

What are the components of landscape planning?

Effective landscape planning is driven by a community vision as to what landscapes should look like in the future and focuses on developing and implementing an effective strategy to achieve that vision. Landscape planning can be thought of as consisting of five key steps (see Figure 6.1).

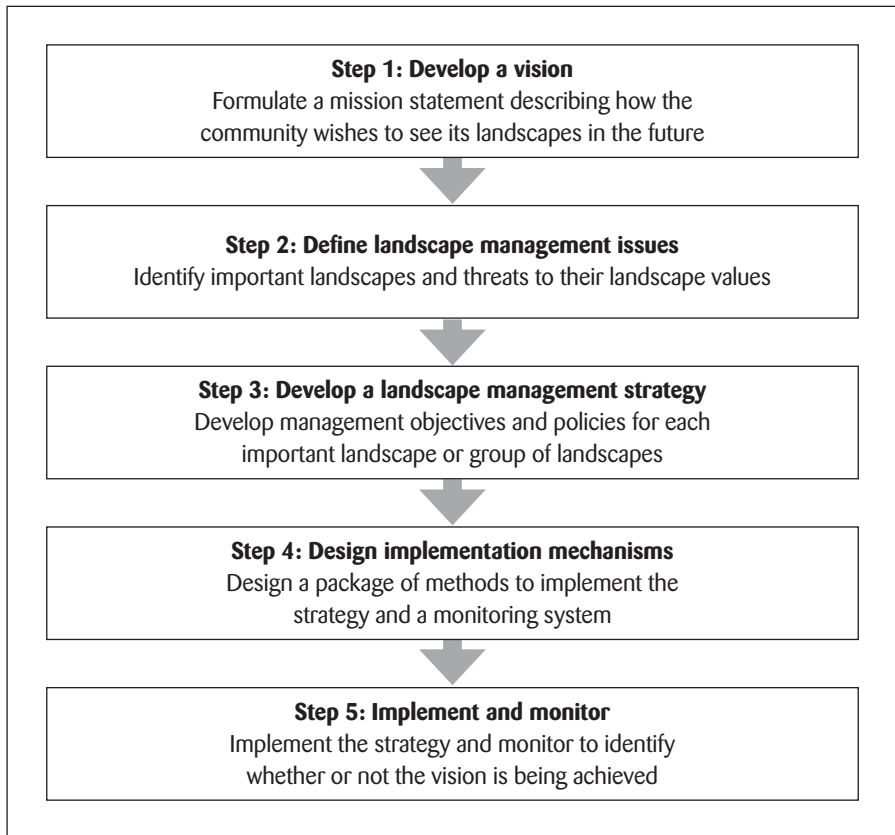


Figure 6.1. Steps in landscape planning.

Although these steps are shown in sequence here, in practice they are likely to be interactive. For example, developing a better understanding of current landscapes through a landscape assessment process can help in the development of a vision for their future.

Developing a vision

The vision sets out the community's desired future outcome for landscapes and provides a clear point of reference for subsequent landscape planning steps. Such a vision can address questions such as:

- What should the landscapes within the district look like in ten, twenty or fifty years time?
- Which landscapes should be protected from change?
- Which landscapes need to be restored?
- What kind and extent of change is acceptable?
- What type of development is appropriate in which landscapes?

Such a vision can be developed through strategic planning initiatives undertaken by the council, such as the identification of Community Outcomes and the preparation of Long Term Council Community Plans under the Local Government Act 2002, or non-statutory coastal management or urban growth strategies. Community members will usually have the opportunity to provide input into these exercises through attending meetings and commenting on documents. You should consider taking up whatever opportunities are provided, as it is these strategic planning exercises which provide the framework within which landscape management takes place.

It is not necessary to wait for the council to initiate a community visioning exercise. Community groups can take a lead and, having done some thinking in advance, be in a more proactive positive to contribute to council initiatives.

The Manaia Vision Project

The Manaia Vision Project, which was established by a group of people who live in Whangarei Heads, organised a display of potential futures for the Heads in order to generate public interest and comment in relation to a council-initiated coastal management project. People attending the display were asked to fill out a questionnaire that explored views on how Whangarei Heads should develop in the future. A follow-up survey was undertaken by the Project to prioritise community issues.

The following example of a vision, developed by the Whangarei Heads community in the context of the preparation of the Whangarei Coastal Management Strategy (see Figure 6.2) reflects the balance sought by that community between development and preserving important natural and cultural landscapes.

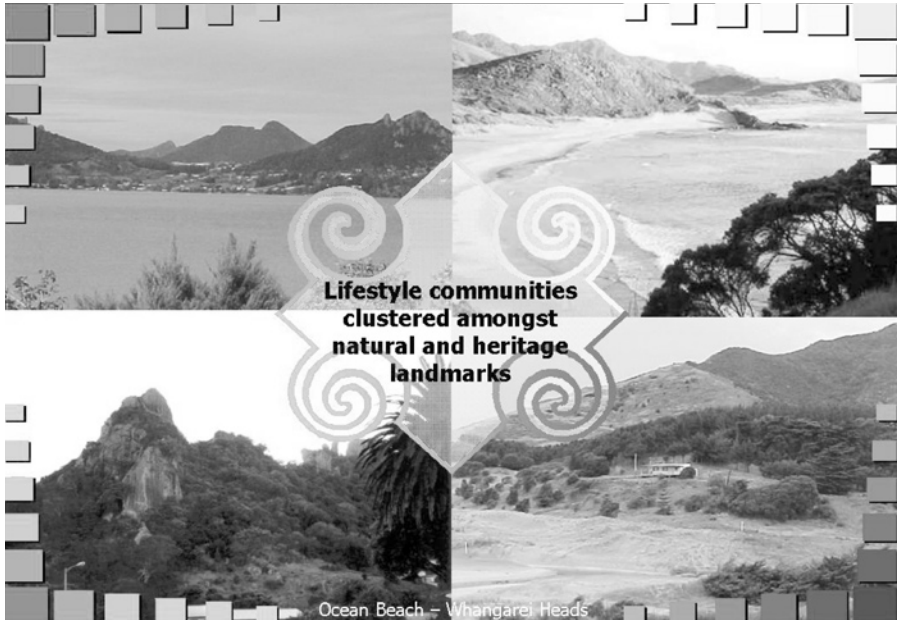


Figure 6.2. Vision for Whangarei Heads¹⁴.

The community on the west coast of Waitakere City formulated the following vision as part of the development of a strategic plan for their area:

As guardians of the West Coast and the Waitakere Ranges, we acknowledge the interdependence of the people with this dramatic and inspiring place. The sea, the coast, and the ranges are envisioned as supporting a superb quality of life for people and locally appropriate plants and wildlife, which is sustained for generations.

14 Beca Planning, 2002, *Whangarei Coastal Management Strategy*, Whangarei District Council, Whangarei.

Defining the nature and extent of landscape management issues

Identifying which landscapes are valued within the district, and threats to their important values, enables management efforts to be focused on key issues. A clear statement of the landscape management issues facing a district helps to focus management efforts on important key issues. The issues identified by Waitakere City Council are illustrated below:

Landscape issues faced by Waitakere City

The Waitakere City District Plan articulates the specific landscape issues facing that district as follows:

- A visual deterioration of the natural landscapes through the introduction of more buildings, structures and urban style roads
- Undermining of the wilderness character of the landscapes from the increased presence of visitors, residents and traffic
- Encroachment of coastal village settlements on the surrounding outstanding landscapes
- Domination of landscape elements through the placement of structures on ridgelines and headlands and other natural landscape elements
- Modification of landscape elements, alteration of the form and coverage of land forms, the land/water interface, and vegetation cover
- Dominance of natural landscape character by structures of inappropriate colour

Waitakere City District Plan 2003, section 5.0, page 52

Developing a strategy to address the issues and achieve the vision

A landscape strategy sets out the direction and course the district intends to take to achieve its overall landscape vision. It is articulated in management objectives which describe environmental outcomes for each landscape or landscape type and the policies which outline how these outcomes will be achieved.

Objectives identify the desired environmental state or goal for the landscape. They indicate the extent to which important values are to be preserved and/or protected and the extent and nature of change which could occur without adversely impacting on those values (see the following for examples of district plan landscape management objectives).

Examples of district plan landscape management objectives

To protect the quality and significance of the City's outstanding landscapes, including maintaining:

- The form and significance of those landscape elements that define each landscape;
- The landscape character that is associated with each landscape and contributes to its uniqueness and value for residents (Waitakere City District Plan 2003, Objective 9).

Maintained or enhanced naturalness of the landscapes as it contributes to the natural character of the lakes catchment (Rotorua District Plan 2000, Lakes A Zone).

To provide for a diverse range of land use activities compatible with maintaining the special environmental amenity and open rural landscape of Land Unit 20, in order to secure its long term protection as a rural buffer area with potentially productive rural land use capability in some parts (City of Auckland District Plan Hauraki Gulf Islands Section 1996, Land Unit 20 – Landscape Protection).

To ensure that development leads to enhanced land management practices and continues rural use which fosters and enhances landscape and environmental values (City of Auckland District Plan Hauraki Gulf Islands Section 1996, Land Unit 22 – Western Landscape).

To retain the open, and remote coastal/non-urban character of the area and the high landscape and natural environmental values present whilst enabling the continued operation of the productive activities undertaken (Rodney District Plan 1993, Change 55).

Policies describe the means by which the defined environmental outcomes, identified in the objectives, will be achieved. These include identifying effects which should be avoided, remedied or mitigated in specific landscapes and, in broad terms, how this will be achieved. Policies may be developed for the whole district and/or for specific management or policy areas. Examples of some good policies designed to protect landscapes follow:

Policies for Tarawera Policy Area, Rotorua District Plan

- P2.5.1 To protect and enhance the natural character of the policy area based on:
- (a) Protection of existing indigenous vegetation
 - (b) Afforestation and/or revegetation of steep land
 - (c) Retirement and restoration of the shoreline
 - (d) Protection of the outstanding natural feature of Mount Tarawera.
- P2.5.2 To ensure that activities and recreational opportunities:
- (a) Retain character that has the appearance of being uninhabited away from the settlement
 - (b) Protect and enhance the existing natural character of the policy area.
- P2.5.3 To avoid the presence of buildings and structures which:
- (a) Detract from the naturalness of the views of Lake Tarawera and Mount Tarawera from identified viewpoints
 - (b) Are obtrusive when viewed from Lake Tarawera
 - (c) Reduce the natural landscape contexts of the settlement
 - (d) Are placed on prominent landform units.
- P2.5.4 To retain the natural character by ensuring that:
- (a) Buildings and structures are low-rise, low key, well spaced and nestle into the vegetation
 - (b) The proliferation of lake structures is reduced and avoided
 - (c) Lake structures adjacent to the settlement do not dominate the unbuilt nature of the lake
 - (d) Vessels are restricted on the lake.
- P2.5.5 To seek protection of vegetation and to promote re-vegetation around buildings and structures to enhance the naturalness of the policy area.
- P2.5.6 To manage excessive noise levels at the shoreline.
- P2.5.7 To maintain and enhance a scenic and vegetated road character.
- P2.5.8 To manage subdivision, use and development of land in ways that:
- (a) Revegetate prominent slopes and erosion prone land
 - (b) Enhance water quality
 - (c) Enhance buffers to protect water bodies
 - (d) Protect historic places and historic heritage
 - (e) Enhance the integrity of indigenous ecology of the Rotorua Lakes Ecological District
 - (f) Recognise the tangata whenua heritage associations.

Landscape Policies for Wakatipu Basin, Queenstown-Lakes District Plan

- (a) To avoid subdivision and development on the outstanding natural landscapes and features of the Wakatipu Basin unless subdivision and/or development will not result in adverse effects which will be more than minor on:
 - (i) Landscape values and natural character; and
 - (ii) Visual amenity values
 - recognising and providing for:
 - (iii) The desirability of ensuring that buildings and structures and associated roading plans and boundary developments have a visual impact which will be no more than minor, which in the context of the landscapes of the Wakatipu Basin means reasonably difficult to see;
 - (iv) The need to avoid further cumulative deterioration of the Wakatipu Basin's outstanding natural landscapes;
 - (v) The importance of protecting the naturalness and enhancing the amenity values of views from public places including public roads;
 - (vi) The essential importance in this area of protecting and enhancing the naturalness of the landscapes.
- (b) To maintain the openness of those outstanding natural landscapes and features which have an open character at present.
- (c) To remedy or mitigate the continuing effects of past inappropriate subdivision and/or development.

Landscape policies for urban development, Queenstown-Lakes District Plan

- (a) To avoid new urban development in the outstanding natural landscapes of Wakatipu Basin.
- (b) To discourage urban subdivision and development in other outstanding natural landscapes (and features) and in the visual amenity landscapes of the district.
- (c) To avoid, remedy and mitigate the adverse effects of urban subdivision and development where it does occur in the other outstanding natural landscapes of the district by:
 - maintaining the open character of those outstanding natural landscapes which are open at the date this plan becomes operative;
 - ensuring that the subdivision and development does not sprawl along roads.
- (d) To avoid, remedy and mitigate the adverse effects of urban subdivision and development in visual amenity landscapes by avoiding sprawling subdivision and development along roads.

For the intent of a plan to be implemented in practice, it is important that these objectives and policies are clearly spelt out in detail and do not merely reiterate the

provisions of the RMA, such as objectives or policies which are worded along the following lines:

'Outstanding natural features and landscapes should be recognized and protected from the adverse effects of inappropriate subdivision, use and development.'

Such general wording provides little guidance as to what outcomes are sought for landscapes, both to applicants submitting resource consent applications and to those assessing and making decisions on such applications.

Identifying specific actions and mechanisms for implementing the strategy

This includes developing rules in regional and district plans as well as supporting voluntary initiatives. Specific mechanisms are described in more detail in Chapter 7.

It is important to keep track of what is happening to important landscapes so that the council and the community know whether or not they are achieving their goals for those landscapes. This will normally happen through the council collecting, analysing and reporting information regularly, in a monitoring report. It is good practice to develop a monitoring programme and methods at the same time as the plan provisions are being developed, otherwise they may end up being difficult to monitor.

Implementing the strategy and monitoring progress

Once the strategy is being implemented, a range of aspects could be measured to provide an indication of what is happening to landscapes within the council's area. You can encourage the council to measure and report regularly on the following:

Pressures on landscapes – which occur from a range of human activities (see chapter 2). Such pressures can be measured by reporting (and preferably showing on maps) the number and location of resource consents, building permits and other authorities granted in important landscapes for a range of activities such as:

- Earthworks
- Construction of buildings and large structures
- Vegetation removal
- Planting of exotic species
- Harvesting of trees
- Subdivision
- Land drainage and large scale irrigation
- Destruction of archaeological and historic sites

Enhancement mechanisms – which provide an indication of environmental gains and which could be measured by reporting on:

- Additional hectares planted in indigenous vegetation
- Area of land protected from development through covenants
- Areas of indigenous vegetation protected from stock by fencing
- Areas where invasive pests and weeds are eradicated or well managed

Outcomes for important landscapes – which may require periodic re-assessment by the council of sample landscapes or, over longer time frames, complete re-assessment of the district or region at regular intervals to identify change and landscapes issues that need to be addressed. This is, however, a much more costly exercise and is unlikely to be undertaken by the council frequently.

Planning Methods for Landscape Protection

Landscape planning methods provide the means by which the objectives and policies are implemented to ultimately achieve the overall vision for landscapes within the region or district. Landscape management methods can be broadly thought of as being directed to achieving one or more of the following (see Table 7.1):

- Identifying the location of important landscapes or highly valued and/or sensitive areas within a landscape (**location of landscapes**)
- Identifying activities that are inappropriate in particular landscape areas because of their negative effects, which cannot be adequately mitigated and therefore which should be avoided altogether (**location of activities**)
- Identifying activities which need to be carefully managed if located in particular landscape areas and providing for such management. This may include controls on how much of a type of activity may occur (**density of activities**), where it may or may not occur (**location of activities**) and how it may occur (**site specific design**).
- Encouraging landowners to protect and enhance important landscape values (**methods to encourage landowners**). Such methods may be provided for in the council's Annual Plan as well as in the district plan and informal guidelines.
- Encouraging the community more generally to protect and enhance important landscape values (**methods to encourage the community**)

Although many of these methods will be implemented through the district plan, those with financial implications for the council may also be implemented through the Annual Plan. Others which do not require regulation may be implemented through the Long Term Council Community Plan or council non-regulatory strategies.

ISSUE	METHODS
Location of important landscapes	• Landscape management zones • Landscape policy areas • Natural environment policy areas
Activity effects	• Restrictive zoning • Strategic land purchase • Land management agreements
Density effects	• Minimum site area • Minimum separation distance between dwellings • Average site areas • Requirements to cluster buildings • Requirements to avoid certain landforms or locations • Concept development plans • Restrictive covenants preventing future subdivision
Site specific effects	• Maximum building height • Maximum site coverage • Prescribed building platform • Visually unobtrusive building design • Locating buildings away from ridgelines, headlands, visually prominent and culturally sensitive areas • Prescribed external colours and building materials • Restrictions on location and extent of earthworks • Restrictions on location and extent of vegetation clearance • Planting requirements • Restrictions on location and extent of infrastructure
Landowner encouragement	• Conservation lots • Transferable development rights • Rating relief • Reimbursement of fencing, covenanting and ongoing management costs • Land management agreements • Design guidelines • Transfer of powers
Community involvement	• Landcare groups • Coast Care groups • Stream Care groups • Other sustainable land management initiatives

Figure 7.1. Summary of landscape management methods.

Implications of permitted baseline provisions

The 'permitted baseline' provisions in the RMA have important implications for the content of regional and district plans. These provisions provide that when considering an application for a resource consent, the consent authority has the discretion to disregard adverse effects of an activity if the plan permits an activity with that effect (section 104(2)).

For example, this means that, if the council decides its plan will permit an activity in an important landscape because of the economic or social benefits from the activity, it potentially opens the area up to other activities with similar negative impacts but without the associated positive impacts. For instance, the plan may provide for farm buildings as a permitted activity in an important rural landscape because of the desire to retain farming as a major rural economic activity in the area. However, such an approach could potentially enable the visual effects of a house to be disregarded if these were similar to the visual effects of a farm building.

To be effective, it is therefore important that plan provisions control all potential negative effects of all potential activities on valued landscapes. This is a difficult task, however, given changing land uses and technologies.

Location of important landscapes

Important landscapes can be identified on planning maps by the delineation of:

- *Special landscape management zones* – these are likely to be more appropriate for large areas where landscape values are to receive special management, and are often focused on outstanding natural landscapes
- *Natural and/or cultural landscape policy areas which overlay zones* – these may be more appropriate for smaller areas or features with special landscape values within broader zones but have been applied to large areas such as in the Queenstown-Lakes District
- *Natural environment policy areas* – these are areas where landscape and other important natural and cultural heritage considerations are integrated into special management areas

The precise boundaries of special areas can become the focus of considerable debate. Boundaries that are based on property titles can make little sense in landscape terms. Landform boundaries are preferable, but approximations at non-natural boundaries such as roads can provide a workable compromise.

Methods to manage effects of specific activities

Activities which are inappropriate in specific landscape areas, because of their potential adverse effects which cannot be adequately mitigated, can be excluded through restrictive zoning. Where activities are sought to be excluded they can be identified in the plan as either non-complying, or in some cases, prohibited activities.

The benefit of prohibited activity status is that it provides the highest level of certainty, as a change to the plan is required before the activity can proceed. The plan change procedure enables a broader consideration (of the district-wide and cumulative impacts of a specific type of activity) to be undertaken than with a resource consent application, but requires more time and resources. A recent Environment Court decision has indicated that this category should only be used when the activity in question should not be contemplated in the relevant place, under any circumstances¹⁵. This decision has, however, been appealed to the High Court so is not determinative. An example of where prohibited activity status has been used in the Waikato District Plan is shown below:

Proposed Waikato District Plan 2004 prohibited activities in Coastal Zone rules

The following activities are prohibited activities for which no resource consent shall be granted:

Land use

- (a) an extractive industry within 1,000m of mean high water springs
- (b) activities within 100m of mean high water springs that involve earthworks or indigenous vegetation clearance, other than activities on public roads and public recreational facilities
- (c) an extractive industry in the Landscape Policy Area
- (d) a landfill in the Landscape Policy Area

Building

- (e) construction of a building within 100m of mean high water springs, except as specified in (f)
- (f) construction of a building within 32m of mean high water springs, if the building is on an allotment wholly within 100m of mean high water springs, which has a certificate of title issued prior to 25 September 2004
- (g) the construction of a dwelling within 15m of any pylon, or within 20m of the centre line, of any electricity transmission line with a capacity of 110kV or greater

Subdivision

- (h) subdivision of land resulting in more than 2 additional allotments (excluding a utility allotment, access allotment or conservation house allotment) containing high quality soils from any allotment with a certificate of title issued prior to 6 December 1997
- (i) subdivision of land resulting in any additional allotments (excluding a utility allotment, access allotment or conservation house allotment) containing high quality soils from a certificate of title issued after 6 December 1997, except where the allotment being subdivided was created by a process other than subdivision under the Resource Management Act 1991.

¹⁵ *New Zealand Mineral Industry Association and Chief Executive of the Ministry of Economic Development v Thames-Coromandel District Council* W50/2004 paragraph 13.

Resource consent applications can be made for *non-complying activities*, although it must be established either that the adverse effects on the environment will be minor or that the activity will not be contrary to the objectives and policies of the relevant plan, before the consent authority can assess whether to grant consent (section 104D). If the objectives and policies of the plan are worded in a broad and non-specific manner, the second leg of the test is not difficult to meet. Many applications for non-complying activities obtain consent. Specifying activities as non-complying in the plan provides less certainty than prohibited activity status, but does allow genuine exceptions which have merit to obtain consent without needing to go through a plan change procedure.

A way to exclude inappropriate activities, outside district plan provisions, is for the council to purchase strategic parcels of land to protect important landscapes or, alternatively, negotiate management agreements with the current landowners to waive development options. These options are, however, expensive and are only likely to be feasible for a few key locations.

Where activities may be appropriate if their effects are mitigated, they can be identified as controlled, restricted discretionary or discretionary activities:

- A *controlled activity* status enables the council to control matters over which it has reserved control in the plan. This may include issues such as the height, location and colour of buildings. Consent, however, must be granted to the application subject to conditions (section 104A), so the council will be unable to stop the activity if negative effects on landscape values can not be effectively mitigated. It therefore may be difficult to control the cumulative effects of controlled activities in the landscape.

Applications for controlled activities are not publicly notified, unless this is required by the plan, and therefore can provide no opportunity for broader public involvement in the decision-making process (section 93), although non-notification provides much greater certainty for the applicant. However, parties who are directly affected by the proposal will be notified and have the opportunity to make submissions if they have not provided written approval to the proposal. This is known as 'limited notification' (section 94).

- A *restricted discretionary activity* status also restricts the council's control to matters specified in the plan, but has the advantage that it does enable the council to decline an application if the effects on landscape values cannot be sufficiently mitigated. Such applications will be publicly notified if the adverse effects on the environment are more than minor, unless the plan states that no notification is required (section 104C). Notification provides for broader public involvement over future development proposals but increases the costs and uncertainty for the

applicant. As is the case with controlled activities, even when the application is not publicly notified there may be limited notification.

If the assessment matters specified in the plan are not adequate to address the particular landscape effects, this method can fail to protect landscapes.

- A *discretionary activity* status enables the council to consider the wider effects of a proposal and to impose conditions without being restricted by matters identified in the plan. Similar to restricted discretionary activities, applications will often need to be notified.

The inclusion of detailed assessment matters or performance standards in the district or regional plan can help with the assessment of resource consent applications. Good examples are those contained in the Queenstown-Lakes District Plan (available at www.qldc.govt.nz) and in the Rotorua District Plan Lakes A Zone (available at www.rdc.govt.nz).

An adequate assessment by the council of applications is a key step in identifying whether the potential effects justify notification.

Methods to manage density effects

The density of buildings and structures is a major determinant of the cumulative impact on predominantly natural landscapes. Building densities can be prescribed in the district plan to enable the council to manage cumulative effects of increasing building development. In areas where some development is appropriate there are several regulatory mechanisms which can be used:

- A *minimum site area* or *separation distance between dwellings* can effectively control subdivision and building density by spacing development out over the zoned area. This can reduce the density to a level that the landscape is capable of absorbing. It is conceptually simple, easy to administer and provides some certainty about the level of development which can occur in an area. It may, however, result in buildings being inappropriately dotted throughout the landscape. Such an approach can also be arbitrary and fail to accommodate differences in landscapes and their ability to absorb development. Close clusters widely separated might be more appropriate.
- *Average site areas* and more specific *requirements to cluster buildings* can also control the overall visual effect of development by encouraging the grouping of buildings in a confined area, with larger natural areas being retained. It allows more flexibility than the minimum site area method. This approach may, however, degrade the landscape in the vicinity of the clustered buildings. In

addition, further subdivision may occur in the larger unsubdivided area in the absence of a long-term protective mechanism such as a restrictive covenant.

- *Concept development plans* (also known as structure plans) can identify the potential location of building platforms within an area through a constraints mapping exercise, which identifies and excludes sensitive areas from development. This is a more 'effects-based' tool for controlling density than minimum or average site areas. However, it can also be more prescriptive as to what can go where. It enables the integrated consideration of an area and, if incorporated into the district plan, provides some certainty as to what is likely to occur in specific areas. If developed without a clear vision and overriding strategic framework for the development of an area, however, this approach can catalyse significant landscape change rather than help to achieve a desired future state for a landscape ¹⁶.
- A *restrictive covenant* being placed on the title to prevent future subdivision is a potentially effective mechanism to prevent subsequent subdivision of a site which is currently being developed.

Methods to manage site specific effects

The location, scale and design of individual buildings and other structures can significantly impact on landscapes. Site-specific design issues can be regulated by assessment criteria and other specific protective rules such as ridgeline and view shaft protection. Assessment criteria could include the following in respect of buildings and structures:

- Maximum building height
- Maximum site coverage
- Prescribed building platform
- Visually unobtrusive building design
- Locating buildings away from ridgelines, headlands, visually prominent areas and culturally sensitive areas
- Prescribed external low reflectivity colours and building materials, shaded glazing and modulated forms
- Restriction on location and extent of earthworks
- Restrictions on location and extent of vegetation clearance
- Restrictions on the location and extent of infrastructure
- Appropriateness of vegetation

Examples of comprehensive assessment criteria are contained in the Queenstown-Lakes District Plan (section 5.4 Resource Consents – Assessment Matters – Rural Zones).

¹⁶ For a review of the application of this approach see Waitakere City Council, 2003, *Structure Planning Review Report* in Agenda for an Ordinary Meeting of the Environmental Management Committee, 16 December, Waitakere City Council, Waitakere City.

Methods to encourage landowners

There are several mechanisms which can encourage land management that preserves landscape values:

- A *conservation lot* provision can enable a landowner to subdivide an additional lot off a parent title, if a special landscape or natural feature is protected in perpetuity through means such as fencing and covenanting. This provides the landowner with a benefit in exchange for protecting important pieces of land. The overall environmental gain may be reduced, however, if the benefit lot is able to be created in a sensitive area. An example of such a provision is Rule 7.14.3.2 (Subdivision of Sites for the Protection of Native Bush and Significant Natural Areas) in the Rodney Proposed District Plan 2000.
- *Transferable development rights* can provide landowners with a development benefit to compensate for reduced development rights in an important landscape area. They enable the right to subdivide to be transferred from one site which is not suitable for development to another site which is. In practice, the approach can be difficult to implement and it seems to work better in urban areas. It will normally require a legal mechanism, such as a covenant, to restrict subdivision rights in the donor area. It also may require the donor landowner to negotiate an arrangement with a landowner in the recipient area to utilise the development right.
- *Rating relief* can reduce the holding costs of land which has a high value due to its development potential and provide some compensation for areas set aside for conservation purposes. Under section 102(5) of the Local Government Act 2002, a council may adopt a rates remission policy. This could address rating relief for landowners retaining land for farming activities, in areas where land values are unrelated to the productive capacity of the land due to strong development pressure.
- *Financial assistance* can be provided by the council or through other agencies, such as the Queen Elizabeth II National Trust, the Nature Heritage Fund and Nga Whenua Rahui, for fencing and covenanting costs where areas of land are protected in perpetuity.
- *Land management agreements* can be negotiated between council and landowners. These may provide that the land owner receives some ongoing financial compensation for foregoing development rights and providing other public benefits, such as access to the land for the public. However, as indicated earlier, this is an expensive option which will be outside the means of all but a few councils.

- *Design guidelines* can describe and illustrate the kind of design solutions that the council is looking for in different landscape settings. These may include such considerations as the layout of lots, the location and scale of buildings in the landscape, the type and location of planting, the design of earthworks and the location of infrastructure. Examples of such guidelines include the *Good Practice Guide: Rural Subdivision* prepared by the Queenstown-Lakes District Council, the *Lakes A Zone Design Guide for Buildings* prepared on behalf of the Rotorua District Council and *Caring for Our Coast* prepared by the Wairarapa Coastal Strategy Group (see chapter 10).
- *The transfer of powers*, where the council transfers aspects or specific areas of landscape management to iwi authorities under section 33 of the RMA, enables a kaitiakitanga approach to landscape management to be implemented.

Methods to encourage community involvement

Community stewardship of the land and participation in landscape management initiatives can be important in the ongoing management and enhancement of landscapes. Such involvement can be facilitated through council support of appropriate individual and community activities. Examples of community initiatives include:

- *Landcare Groups* which bring farmers, lifestyle residents and others together to jointly undertake initiatives aimed at sustainable land management. Activities can include revegetation, weed and pest control, and protection of important habitats. Councils can provide financial and technical support for these activities.
- *Coast Care* programmes which mobilise communities to restore dune systems along the coast. In the Bay of Plenty, the council-supported programme provides advice on reducing and repairing dune damage and supplies native dune plants, information brochures, fertilisers and building materials free.
- *Stream Care Groups* where landowners and occupiers associated with a stream work co-operatively to improve catchment management and stream quality.

Combining methods

Effective management of landscapes will normally require a package of methods which include identification of valued landscapes; rules in plans to manage the location, density and design of development which impacts on these areas; and incentives for landowners and other community members to take actions which maintain and enhance the landscapes. You may wish to encourage your council to adopt a package of

measures, which include all these elements, through making submissions on council plans and strategy documents.

Part Three

Additional Resources

Useful Cases on Landscape Protection

Wakatipu Environmental Society Incorporated and others v Queenstown-Lakes District Council C180/1999

This decision by the Environment Court related to appeals on the adequacy of the Queenstown-Lakes District Proposed Plan to protect landscapes in the area. The Court makes a number of useful findings about the classification, assessment and protection of landscape including:

- In carrying out its functions, including the preparation of a district plan, it is mandatory for a district council to identify matters of national importance including outstanding landscapes. 'We do not see how that can be achieved without identifying (necessarily with a broad pencil, but with as much accuracy as possible) the boundaries of the areas concerned' (page 32).



Figure 8.1. Landscapes in the Wakatipu Basin, Queenstown-Lakes District.

- A precise definition of 'landscape' cannot be given. However a working definition includes the following:
 - Landscape is a large subset of the environment.
 - Landscape involves both natural and physical resources and various factors relating to the viewers and their perception of the resources.

- Landscape is a link between individual resources and the environment (as defined in the RMA) as a whole. It considers a group of natural and physical resources together. It also emphasises that our attitudes to those resources are affected by social, economic, aesthetic and cultural conditions (pages 45-46).
- The criteria for assessing landscape includes:
 - The natural science factors - the geological, topographical, ecological and dynamic components of the landscape
 - Its aesthetic values including memorability and naturalness
 - Its expressiveness (legibility): how obviously the landscape demonstrates the formative processes leading to it
 - Transient values: occasional presence of wildlife; or its values at certain times of the day or of the year
 - Whether the values are shared and recognised
 - Its value to tangata whenua
 - Its historical association (pages 46-47).
- The word 'outstanding' in 'outstanding natural features and landscapes' in section 6(b) of the RMA means 'conspicuous, eminent, especially because of excellence' and 'remarkable in' (page 48). A landscape may be magnificent without being outstanding. If being considered by a regional council, then 'outstanding' is considered on a regional basis. If being considered by a district council, then outstanding must be considered in terms of the district. In relation to a district plan, what is outstanding can only be assessed on a district-wide basis, because the sum of the district's landscapes are the only immediate comparison that the council has (page 49). Usually an outstanding natural landscape should be so obvious (in general terms) that there is no need for expert analysis (page 57).
- Some hillsides, faces and foregrounds are not in themselves outstanding natural features or landscapes but, looked at as a whole together with other features that are, they become part of a whole that is greater than the sum of its parts (page 59).
- The 'naturalness' of a landscape under section 6(b) can be judged using the following criteria:
 - The physical landform and relief
 - The landscape being uncluttered by structures and/or 'obvious' human influence
 - The presence of water (lakes, rivers, sea)
 - The vegetation (especially native vegetation) and other ecological patterns
 The absence or compromised presence of one or more of these criteria does not mean that the landscape is non-natural, just that it is less natural (pages 51-52).
- Less significant landscapes are also protected under section 7 of the Act. However, this section does not automatically protect the status quo. For example, there

is no automatic preference for introduced grasses over pine, or farming over lifestyle blocks (page 52).

Arrigato Investments Limited and Evensong Enterprises Limited v Auckland Regional Council, Rodney District Council and McDonald CA 84/2001

This decision related to an appeal to the Court of Appeal in relation to an application for a resource consent to subdivide a property on the southern headland of Pakiri Beach, on the northeastern coast of the Auckland region. Pakiri Beach is a long white sandy beach backed by extensive dunes with an almost entirely rural backdrop consisting of pasture and exotic forest. The application was for a non-complying activity. It was declined by the Rodney District Council and subsequently granted by the Environment Court. The Environment Court's decision was overturned by the High Court, and the High Court's decision subsequently overturned by the Court Appeal, which allowed the development to proceed.



Figure 8.2. Pakiri Beach viewed from the north.

The major point in contention was the potential visual impact on the coastal landscape of houses which were proposed to be located on ridgelines. The application also included a proposal to covenant almost 60 per cent of the site and almost 300,000 indigenous seedlings had already been planted (although this was not intended to

screen the house sites). The Environment Court found that the land and seascapes were already significantly degraded through farming activities and that revegetation would enhance and improve the degraded landscape. It also stated that the intrusion of buildings on a ridgeline, even in the coastal environment, is not inherently unattractive and should be balanced with other matters such as the revegetation.

With regard to the RMA, the Environment Court found that Pakiri Beach was not outstanding in terms of section 6(b) because, although it had a unique and attractive natural quality in its own right, its intrinsic beauty had already been severely diminished by human habitation, through the stripping of indigenous vegetation and subsequent erosion. The Court found that the adverse effects of the proposal would be no more than minor when compared with what could be developed as of right under existing consents. It also found that the proposal was consistent with the objectives and policies of the statutory planning documents which sought, where possible, to enhance the landscape and natural features.

The High Court overturned the Environment Court's decision, on the basis that the proposal was not in any way consistent with the planning documents. The High Court also held that the proposal should have been assessed on the basis of its effects on the environment as it exists, or as it would exist if the land was used in a manner permitted as right by the plan, and that it should not be assessed against what was possible under an existing consent.

The Court of Appeal overturned the High Court's decision on the basis that subdivisions in the coastal environment are not altogether prohibited and that, although there was a clear emphasis in the provisions of the planning document on protecting and retaining Pakiri's qualities, they did not suggest a total embargo on further development. The Environment Court was therefore entitled to make a value judgement as to whether the proposal was appropriate or not. The Court of Appeal also found that, in some cases, it will be appropriate to regard an activity involved in an unimplemented resource consent as being part of the permitted baseline, but equally there may be circumstances where it would not be appropriate to do so. There should be no rigid law either way.

Golden Bay Marine Farmers and others v Tasman District Council W42/2001

This decision considers appeals in relation to the provisions in the Tasman Resource Management Plan for aquaculture. One of the major issues in contention was the protection of natural character, landscape, seascape and visual amenity of Tasman and Golden Bays. The Environment Court found that:

- The Golden Bay landscape/seascape interface, apart from the identified shoreline settlements and small marine farms, had a high degree of natural character which encompassed estuaries, tidal mud flats, coastal waters, beaches and areas in and around coastal margins. It was therefore important at a national level to protect this character and to locate further development where some is already situated (paragraph 725).
- Golden Bay, as an entity, is an outstanding natural landscape/natural feature despite the settlement modifications which exist on land. To grant all the proposals for aquaculture would diminish the Bay's outstanding status markedly. Although in some places the farms would not necessarily be seen, they would still exist (paragraphs 733 and 734).
- Where a landscape is perceived as natural or outstanding, marine farms introducing for the first time a 'working landscape' create a significant adverse effect (paragraph 793).
- The case for protecting the natural character and coastal margins of the Onekaka area from development was very strong. 'This case is not just about the natural character of landscape. It encompasses untouched beaches, coastal margins, the ebb and flow of the tides, the extensive uncluttered seascapes and all accompanying natural processes' (paragraph 794).

Manger v Hawea Trust Limited, TLEG Limited and Banks Peninsula District Council C114/2004

In this case the applicant sought consent for the construction of 7 houses on a 140 hectare block located on Mt Herbert above Diamond Harbour on the Banks Peninsula. The site was within an area identified as an outstanding natural landscape in the district plan and was a non-complying activity. The house sites were some 100 metres above the existing line of housing in Diamond Harbour and were for the most part located below ridgelines. They were, however, visible from locations around the bays, from across the harbour at Lyttleton and from the slopes above.

The Court declined the application and made the following observations:

- The context of development is critical to visual perception. In this case the predominant land use was pastoral farming with the land below the sites being pasture with scattered trees and shrubs, shelter belts and small farm forestry blocks, and the land above the house sites being open with a turf/tussock cover. The Court found that the perception was that it was a natural landscape, although it was, in fact, a managed cultural landscape (paragraph 52).
- Even though the harbour forms part of the backdrop to the site and influences it, the upper reaches are not part of the coastal environment, as the dominant

feature is the rural pastoral environment and the broad ridges and rocky outcrops which lead to the summit (paragraph 74).



Figure 8.3. Mt Herbert viewed from Lyttleton Harbour.

- The proposal represented a new threshold as there is currently no residential development in the area at the same contour. It could be regarded as a new benchmark for development and it could make it extremely difficult for the council to limit similar developments surrounding the site. It could also have precedent effects for other rural land that is not protected as an outstanding landscape (paragraphs 104-106).
- The applicant had attempted to address concerns about the intrusion of buildings into an outstanding landscape through adopting a management approach, consisting of the establishment of vegetation to screen the development and controls on lot size and building size, shape and colours, to reduce intrusion into the landscape. However, the Court was not satisfied that the management response would result in no adverse effects within the outstanding landscape and was also concerned that a precedent would be set whereby further intrusions into the upper contours of the caldera may be sought and granted if this application were granted (paragraphs 123-126).

- There was sufficient land available within the residential zone at the lower contours of Diamond Harbour to provide for residential and rural residential requirements in the area (paragraph 128).

Gannet Beach Adventures Limited, Gordon and Harland v Hastings District Council and Cape Kidnappers Station Limited, W90/2004

This case considered a proposal to develop a tourist lodge within the coastal environment on Cape Kidnappers Station. The proposed development consisted of a main lodge building and 24 accommodation units. Although the lodge was sensitively designed to blend in with the landscape, being recessed into a ridge and having turfed roofs on the lodge and chalet, it would still be visible from a range of viewpoints, including the Department of Conservation reserve on Cape Kidnappers where a gannet colony is located. Much of the site was identified as an outstanding natural feature in the Hastings District Plan.



Figure 8.4. Cape Kidnappers, Hawkes Bay.

The Environment Court found that Cape Kidnappers was a highly significant landscape and referred to the number of times it featured in coffee table books as testifying to its dramatic beauty and memorability. It found that it was one of the most memorable places in the country and was generally regarded as an ‘iconic treasure’. It also had strong historical associations and provided a backdrop to one of the earliest encounters between Māori and Pākehā (paragraph 55).

The Court stated that a development could be said to have an adverse effect on the environment if it is something which threatens the qualities and values which make the place so special (paragraph 59).

After considering the evidence of six landscape architects – of whom four supported the proposal and two opposed it – and visiting the site themselves, the Court found that ‘... no amount of mitigation will prevent a development of this kind and scale having more than minor adverse effects on the environment of such a place’ (Paragraph 72). The Court declined the application.

Infinity Group and Thorn v Queenstown-Lakes District Council C10/2005

This case considered a proposed variation to the district plan to incorporate a special zone, extending over a 75 hectare site, which enabled the development of up to 400 residential units. The development was located on a peninsula extending into Lake Wanaka to the northeast of Wanaka township. The site was mainly covered in pasture with a few pockets of kanuka and matagouri.

The Court found that part of the site was an Outstanding Natural Landscape (ONL) and that the balance was a Visual Amenity Landscape (VAL). The key question in the proceedings was whether development should be provided in two sensitive landscape areas labelled Areas 2 and 5.

The Court cancelled the variation and held that the potential adverse effects of the proposed development in those areas could not be adequately or appropriately avoided, remedied or mitigated by the controls on the height, bulk, location or appearance of buildings, nor by requirements to retain vegetation (paragraph 148). The Court questioned the effectiveness of mitigation in sensitive landscapes. It stated (paragraphs 149 and 150):

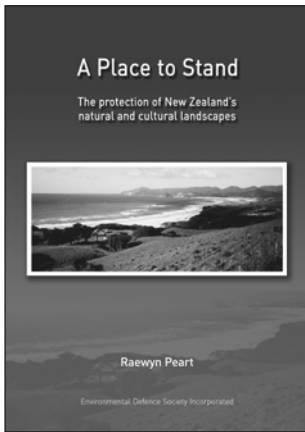
While it remains alive in suitable locations and height, vegetation can hide, or at least soften the view of development. But hiding development, or softening its appearance, does not excuse providing for development that should not be provided for in an ONL, or a VAL where it would not have potential to absorb change without detracting from landscape values.

Further we do not have confidence that district plan requirements for retaining vegetation will necessarily be effective in the long term. As well as being vulnerable to fire, disease, and natural mortality, the continued life of vegetation may depend on the extent to which it is perceived to obstruct valued views.

Sources of Further Information

Landscape management

A Place to Stand: The Protection of New Zealand's Natural and Cultural Landscapes, Raewyn Peart, Environmental Defence Society, 2004.

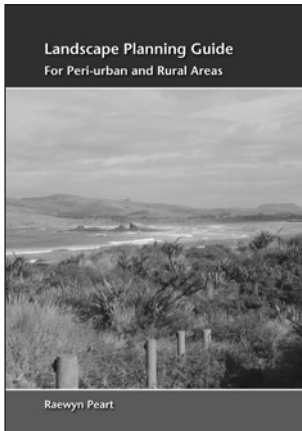


This report examines how well we are managing New Zealand's important landscapes. It explores the issues of what are New Zealand's important landscapes, how are they assessed, what are the threats to them, how well are we managing these threats and how could we strengthen the landscape management system. It reviews case law relevant to landscape protection and contains five case studies of landscape management in the Waitakere Ranges, Coromandel Peninsula, Wakatipu Basin, Banks Peninsula and Whangarei District. The report provides a useful overview of planning strategies for landscape protection and their strengths and weaknesses. Copies are available from the Environmental Defence Society at www.eds.org.nz.

Reclaiming our Heritage: Proceedings of the New Zealand Landscape Conference, Environmental Defence Society and the New Zealand Institute of Landscape Architects, 2003.

These proceedings contain 22 papers which were presented at the New Zealand Landscape Conference held in July 2003. They include papers about landscape in our culture, how well we are managing our landscape, international experience, possible solutions for New Zealand and 'where to from here?'. Copies of the proceedings report are available from the Environmental Defence Society at www.eds.org.nz.





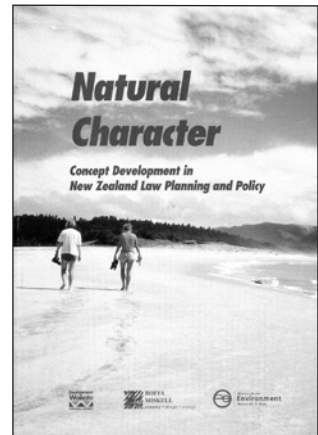
Landscape Planning Guide for Peri-urban and Rural Areas, Raewyn Peart, Environmental Defence Society, 2005.

This guide is designed to provide assistance to regional councils and territorial authorities in addressing landscape management issues in their policy statements and plans under the RMA. Copies of the Guide are available from the Environmental Defence Society at www.eds.org.nz.

Natural Character: Concept Development in New Zealand Law, Planning and Policy, Rebecca Maplesden and Boffa Miskell, Environment Waikato, 2000.

This report provides a very useful summary of the legal interpretation of 'natural character' as well as practitioner views on how natural character can be interpreted and assessed. The key conclusions of the report include:

- Natural character is present to some degree in every coastal environment. It therefore should be treated as a matter of national importance in every coastal development situation. However, if an environment is heavily modified, it is then easier to facilitate 'appropriate' subdivision, use and development.
- Natural character encompasses those elements that have been brought into being by nature and are, more importantly, subject to ecological processes (as opposed to cultural components).
- The primary components underpinning natural character are natural processes (ecological processes), natural elements (geology, landforms, vegetation cover, seabed, foreshore, etc.) and natural patterns (natural distribution of the non-manufactured elements of an environment). It is the interrelationship of these components which produces natural character of varying degrees.
- The RMA provides the strongest protection to predominantly natural environments that are largely free of built structures and modifications.



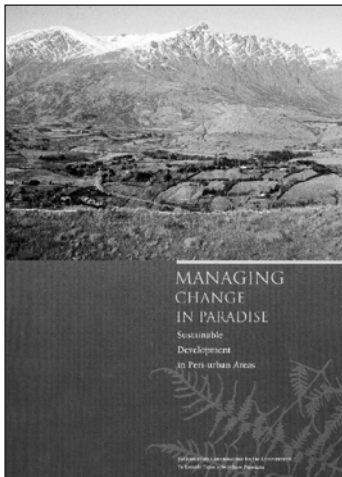
However, in some situations, development will be inappropriate in modified environments if it further degrades a coastal environment.

- Natural character should be assessed in context. A small change in a natural area surrounded by a highly modified environment may be more significant than where it is surrounded by a largely natural environment. The ability of an environment to return to its natural state should also be considered. This includes a site's ecological resilience and natural restoration potential.
- In determining the appropriateness of development, it can be useful to consider the continued functioning of ecosystems; the maintenance and enhancement of natural patterns, processes and elements; and the sensitivity and vulnerability of the physical and experiential landscape. Other matters to consider are the functional need of the activity to be in the coastal environment and the 'fit' between the proposal and the existing environment in terms of context, existing character and scale.

A copy of the report is available at www.ew.govt.nz.

Managing Change in Paradise: Sustainable Development in Peri-urban Areas, Parliamentary Commissioner for the Environment, June 2001.

This report sets out the findings of the Commissioner on the effectiveness of environmental planning and management in promoting the sustainable development of peri-urban areas. There is a strong emphasis on the protection of landscape and the key themes from case law are identified. These include:



- Local authorities may be legally required to identify and delineate areas that require protection and to provide for a different management regime in these areas.
- Landscape needs to be assessed in a holistic way, including the geophysical, biophysical and experiential elements.
- While certain elements of landscape (such as the level of development and the nature of landforms) can be objectively assessed, there will always be a subjective element in landscape assessment. This requires local authorities to establish what the community values now and what might be appropriate for the future of the area.

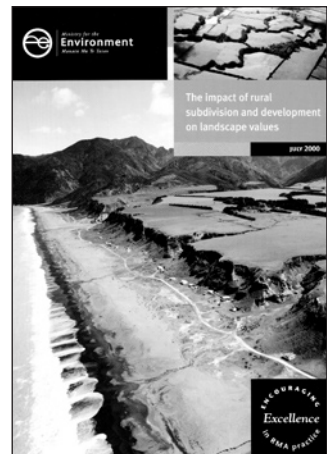
- The concept of 'outstanding' in relation to landscape includes descriptive terms such as conspicuous, eminent, excellent and remarkable.
- The concept of 'natural' includes being a product of nature and can include such things as pasture, exotic tree species and wild and domestic wildlife.
- When assessing cumulative effects, the courts will often consider the type and level of existing land use in the area. In some cases the courts have determined that, where there is a high level of development, an additional development will result in adverse cumulative effects because the threshold has been reached. In other cases, the courts have determined that because a highly developed area is already compromised, an individual application will have no discernable cumulative effect.

In 2003, the Parliamentary Commissioner for the Environment produced a subsequent report on landscape issues, titled *'Superb or Suburb? International Case studies in Management of Icon Landscapes'*. This describes landscape management in the Oaks Ridges Moraine in Ontario Canada, the Cape Peninsula in South Africa and the Peak District in the United Kingdom. Both reports are available from the Commissioner at www.pce.govt.nz.

The Impact of Rural Subdivision and Development on Landscape Values, Ministry for the Environment, July 2000.

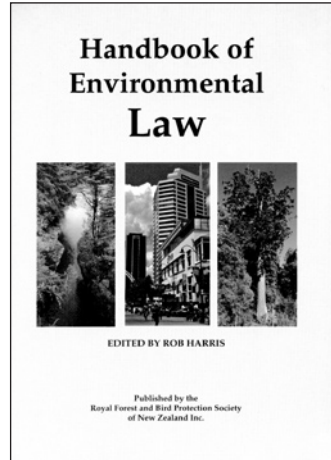
The purpose of this report is to assist planners working on district plans to deal with the landscape implications of rural subdivision and associated developments. The report identifies landscape issues to be addressed in district plans. It also contains a toolbox of planning techniques which can be used to control impacts on landscape values. It usefully assesses the advantages and disadvantages of each tool.

Another report, released by the Ministry for the Environment in February 2000, deals with amenity values and amenity conflicts in rural areas. It is titled *'Managing Rural Amenity Conflicts'*. Both reports are available from the Ministry for the Environment at www.mfe.govt.nz.



Handbook of Environmental Law, The Royal Forest and Bird Protection Society Incorporated, 2004.

This useful handbook covers a range of issues related to resource management. It contains a chapter by Claire Findlay on protecting the landscape (chapter 20) and one by Claire Heather and Geraldine Baumann on protecting historic heritage (chapter 21). Copies are available from Brookers (www.brookers.co.nz).



Quality Planning website, www.qualityplanning.org.nz

This website has much useful general information for resource management practitioners on planning processes and practice and has a dedicated section on landscape.

Heritage landscapes

Heritage Landscapes Think Tank: Report on Proceedings, New Zealand Historic Places Trust, 2003.

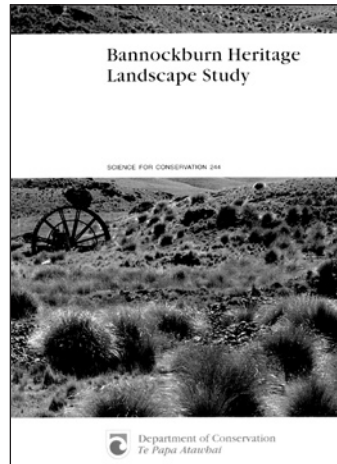
These proceedings record information and viewpoints aired at the Think Tank meeting, including discussions on the concept of heritage landscapes, their philosophical and legal framework and their recognition, protection and interpretation. Electronic copies of the proceedings are available at www.historic.org.nz.

'Looking Forward to Heritage Landscapes' Conference, New Zealand Institute of Landscape Architects, Dunedin, April 2005.

Papers from this conference cover a range of issues related to the management of heritage landscapes. Copies of papers are available from NZILA (www.nzila.co.nz) and include '*Heritage Landscapes: Developing Legislative Framework Which Allows for Protection and Change*, by Environment Judge Shonagh Kenderdine.

Bannockburn Heritage Landscape Study,
Stephenson J, H Bauchop and P Petchey,
Department of Conservation, Science for
Conservation 244, 2004.

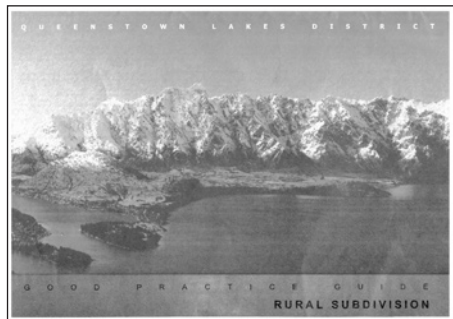
This publication describes the application of a methodology to assess heritage landscapes to the Bannockburn area of Central Otago. It provides an excellent description of the concept of 'heritage landscape'. It describes the history of the Bannockburn landscape and the contemporary cultural values attached to it. The report then analyses and evaluates the Bannockburn landscape and provides suggestions for future management actions. Copies are available from the Department of Conservation (www.doc.govt.nz).



Good practice guides

Good Practice Guide: Rural Subdivision,
Queenstown-Lakes District Council, undated.

This Guide has been developed by the council in order to promote good practice in rural subdivision design. It clearly illustrates good and bad practice for a range of aspects of subdivision design, including lot layout, building location, maintenance of landscape and rural character, roading and access ways, planting, earthworks, ecological values and infrastructure. Copies are available from the Queenstown-Lakes District Council, Private Bag 50072, Queenstown.



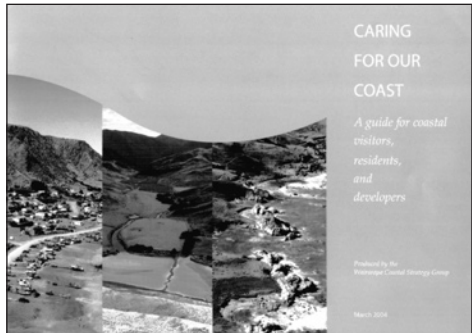
Lakes A Zone Design Guide for Buildings, Rotorua District Council and Lucas Associates, 2002.

Lakes A Zone Revegetation Guide, Lucas Associates, 2004.

The first Guide provides practical advice on how to design buildings to be sympathetic to the existing landscape character of the lakes. The second Guide describes the revegetation requirements in the District Plan for the Lakes A Zone, how they can be met and how developers can actively enhance natural character through replanting of locally sourced indigenous species. Copies of the Guides can be downloaded from the Rotorua District Council's website (www.rdc.govt.nz).

Caring for Our Coast: A Guide for Coastal Visitors, Residents and Developers, Wairarapa Coastal Strategy Group, 2004

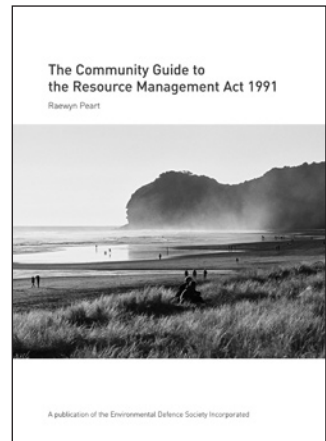
This Guide has been prepared to encourage better coastal management. It describes an approach to designing low impact development on the coast that is equally relevant to minimising the impacts of development on other important landscapes. It also contains information on planting in coastal areas and respecting coastal heritage. Copies are available from the Greater Wellington Regional Council (www.gw.govt.nz).



Guides to processes under the RMA

Community Guide to the Resource Management Act 1991, Raewyn Peart, 2004.

This Guide provides detailed information on processes under the RMA, including applying for a resource consent and making submissions on resource consent applications and plans. Copies are available from the Environmental Defence Society (www.eds.org.nz). An electronic version is available at www.rmguide.org.nz.



Your Guide to the Resource Management Act: An Essential Reference for People Affected by or Interested in the RMA, Ministry for the Environment, 2004.

This presents a simple explanation of the RMA, the processes it has established and how you can pursue your interests, whatever they may be. It has been written from the perspective of users of the RMA, and in it you will find information on (and examples of):

- Why the RMA came about
- What it sets out to achieve
- Who does what under the RMA
- Your responsibilities for the environment when seeking to carry out development
- The opportunities for you to influence decisions made about the environment, and how you can take action to protect the environment
- Who you can turn to and where you can go for further information

Copies are available from www.mfe.govt.nz/publications/rma.

Everyday Guide to the RMA Series, Ministry for the Environment.

This series of Guides provides practical information about a range of processes under the RMA. Current guides include:

- An Overview of the Resource Management Act
- Applying for a Resource Consent
- Your Rights as an 'Affected Person'
- Making a Submission about a Resource Consent or a Designation
- Appearing at a Resource Consent or Designation Hearing
- Making a Submission on a Proposed Plan, Plan Change or Variation
- Appearing at a Council Plan Change Hearing
- A Guide to Consultation for Resource Consent Applicants

Copies of the Guides are available from www.mfe.govt.nz/publications/rma.

New Zealand has a great diversity of impressive landscapes. These landscapes make a significant contribution to the country's economic, social and cultural well-being. They are increasingly under threat from poorly planned and designed development.

This Guide provides practical information for people who wish to obtain better protection for New Zealand's landscapes. It covers:

- What 'landscape' means and why landscapes are important
- The application of the provisions in the Resource Management Act to landscape management
- The identification of important landscapes
- Methods which can be used to protect landscapes
- How individuals, groups and developers can become involved in landscape protection

This comprehensive guide to landscape protection under the Resource Management Act 1991 will be an invaluable resource for those with an interest in promoting the better protection of New Zealand's landscapes.

Raewyn Peart is a Senior Policy Analyst for the Environmental Defence Society. She is a qualified lawyer and has over fifteen years experience in environmental law and policy. Her recent publications include *A Place to Stand: the Protection of New Zealand's Natural and Cultural Landscapes*, *The Community Guide to the Resource Management Act 1991* and the *Landscape Planning Guide for Peri-urban and Rural Areas*.